From:	MOUSSA, Pascal
To:	Perth Registry; Tom & Co Legal
Cc:	TEOH, Kenneth; MAPLEDORAM, Donna
Subject:	RE: 2023/3364 - RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission - Notice of Application [SEC=OFFICIAL]
Date:	Monday, 29 May 2023 8:46:13 AM
Attachments:	RE Forward Focused Group Pty Ltd - Request for internal review of suspension decision SECOFFICIAL.msg 2lynj12skjf4ih6yg-AAT Reviews for Simon Reid Vida Reid and Forward Focused Group Pty Ltd.pdf

EXTERNAL EMAIL
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Hi Jessica

Thank you for your time on the phone on Friday.

I confirm receipt of the notice/s of application for AAT review in relation to the matters of:

1. Mrs Vida Reid (AAT ref: 2023/3361);
2. Mr Simon Reid (AAT ref: 2023/3363); and
3. Forward Focused Group Pty Ltd (FFG) (AAT ref: 2023/3364)

Below I have set out some issues for the AAT's consideration (and have copied the applicants' lawyer into this email for their awareness too).

1. Jurisdiction of AAT to determine the FFG application for review
We understand that, on 10 May 2023, FFG applied to the AAT for external merits review (pursuant to section 103 of the *National Disability Insurance Scheme Act 2013* (**the NDIS Act**)) in relation to an internal review decision that is *purported* to have been made by a delegate (**the internal reviewer**) of the NDIS Quality and Safeguards Commissioner (**the NDIS Commissioner**).

The internal review to which FFG refers involves the reconsideration of a decision made by a delegate of the NDIS Commissioner, on 20 December 2022, to issue a banning order to FFG (under section 73ZN(1)(a) of the NDIS Act).

In our view, FFG's application for AAT review has been invalidly made on the basis that FFG has prematurely sought AAT review – a decision was not due on the internal review until 22 May 2023 (see **attached** correspondence to FFG dated 21 February 2023). As a result, we do not believe the AAT has jurisdiction to hear the application that has been made by FFG at this time.

To assist the AAT (and FFG), we note:

a) on 19 May 2023, the internal reviewer sought FFG's consent to an extension of time to finalise the review. The extension was sought on the basis that it would enable the internal reviewer to consider further relevant material that had been recently brought to her attention (among other things).

b) the internal review decision was due to be made on 22 May 2023.

c) On 24 May 2023, FFG informed the internal reviewer that it did not consent to the extension of time.

d) the internal reviewer is currently in the process of finalising the internal review and intends on making a decision imminently and providing FFG with a statement of reasons for that decision. As part of this process, the internal reviewer intends on providing FFG with a copy of the relevant material she has relied upon in forming her view as to the correct and preferable decision to be made, and will be inviting FFG to make submissions in relation to the proposed decision (if it wishes to).

It is our understanding that FFG will be able to seek AAT review of the internal review decision (once made) under section 29(3)(b) of the *Administrative Appeals Tribunal Act 1975*.

In light of the above, FFG may wish to withdraw their current application for AAT review and re-submit once the internal review decision is made.

Lastly, we wish to note that the documents provided by the AAT to the NDIS Commission last Friday (in particular, an email from FFG to the AAT dated 17 May 2023 - **attached**) indicate that FFG may be operating on the misapprehension that the NDIS Commission had merged or combined the internal review matter of FFG with the internal review sought by Mrs Reid (the latter was decided on 21 April 2023 and is now before the AAT). The NDIS Commission confirms that it has not consolidated these matters nor represented an intention to do so to FFG's lawyer/s. As noted above, the internal review concerning FFG's banning order is presently in progress and will be finalised imminently.

2. Timeframe for providing section 37 (T-Documents) & Postponement of directions hearing
We understand there have been some procedural delays in the NDIS Commission being notified of the AAT review applications listed above, and we thank the AAT for the opportunity to:

a) seek an extension of time to submit the documents required by section 37 of the AAT Act (i.e. T-Documents), and
b) seek a postponement of the case management directions hearing that is currently scheduled for 8 June 2023.

We confirm that an extension of a further 14 days (until 7 July 2023) in relation to the lodgement of the NDIS Commission's T-Documents would be appreciated.

We are happy to defer to the AAT in terms of when the case management directions hearing should be scheduled to better align with the abovementioned extended timeframe to lodge T-Documents.

Please do not hesitate to contact me in relation to this matter if you have any queries.

Kind regards

Pascal Moussa
Lawyer
Legal Services and Internal Integrity Division

NDIS Quality and Safeguards Commission

P: 02 9942 5726 | **E:** pascal.moussa@ndiscommission.gov.au
www.ndiscommission.gov.au

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From: Perth Registry <perth.registry@aat.gov.au>
Sent: Friday, 26 May 2023 12:20 PM
To: Legal <Legal@ndiscommission.gov.au>
Subject: 2023/3364 - RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality

and Safeguards Commission - Notice of Application [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy] [SEC=OFFICIAL]

Dear Sir/Madam

Please find attached notice of an application for review of a decision under section 29 of the Administrative Appeals Tribunal Act 1975.

Yours sincerely

Jessica P
Tribunal Officer

Administrative Appeals Tribunal
Registry
T: 08 6222 7200 F: 08 6222 7299
E: perth.registry@aat.gov.au

www.aat.gov.au

Please refer to the AAT website for information about temporary changes in place to respond to the impact of COVID-19 on services, including special measures practice directions: http://www.aat.gov.au/impact-of-coronavirus-covid-19-on-our-services.

The AAT will not usually send a hard copy of any document sent to you by email, unless you request that we do so.

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</p<>

From:	MOUSSA, Pascal
To:	Perth Registry
Cc:	MAPLEDORAM, Donna; MCGRILLEN, Hilda; Tom Monks
Subject:	Request for extension of time to lodge section 37 documents - 2023/3361 & 2023/3363 - Vida Reid / Simon Reid and NDIS Commission [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]
Date:	Thursday, 6 July 2023 7:22:44 AM
Attachments:	Re Extension for lodgement of T-Documents in Vida Reid (20233361) Simon Reid (20233363) AAT matters SECOFFICIAL.msg

EXTERNAL EMAIL
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Dear Natalie

I am writing in relation to the AAT matters of Vida Reid (2023/3361) and Simon Reid (2023/3363).

The NDIS Commission is presently required to lodge all documents required under section 37 of the AAT Act (T-Documents) by 7 July 2023.

In preparing to meet this deadline, the NDIS Commission has identified a voluminous amount of potentially relevant documents in its holdings; it is working at speed to review and collate them for lodgement. Unfortunately, this process is taking a considerable amount of time (given the significant number of documents), and it is further complicated by the presence of legal advice and other confidential information in the identified documents. (The NDIS Commission will likely need to seek a confidentiality order over such material and is reviewing the documents carefully to ensure all confidential information is appropriately identified).

In light of these circumstances, the NDIS Commission seeks a short extension of two weeks (until 21 July 2023) for it to lodge the T-Documents in both matters listed above.

The NDIS Commission has sought the Applicants' view on the proposed extension, and both have objected. **Attached** is the response from the Applicants' lawyer, Mr Tom Monks, for your reference.

If you need any further information to process this request for an extension, please let me know.

Kind regards

Pascal Moussa
Lawyer
Legal Services and Internal Integrity Division

NDIS Quality and Safeguards Commission

P: 02 9942 5726 | **E:** pascal.moussa@ndiscommission.gov.au
www.ndiscommission.gov.au

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From:	Tom Monks
To:	MOUSSA, Pascal
Cc:	MCGRILLEN, Hilda
Subject:	Re: Extension for lodgement of T-Documents in Vida Reid (2023/3361) & Simon Reid (2023/3363) AAT matters [SEC=OFFICIAL]
Date:	Wednesday, 5 July 2023 3:56:17 PM

Dear Ms Moussa

We refer to the above matter and your email below.

Given that the Commission had sufficient time and resources to attend to the lodging of material documents pursuant to section 37 of the *Administrative Appeals Tribunal Act*, our clients have instructed that they both object to the extension of time to lodge the T-Documents.

Kind regards

Tom Monks | Legal Practitioner Director
LPN 5512580
phone +61 (08) 6255 5737
email tom@tomandcolegal.com.au
office 45 Delawney Street, Balcatta, WA 6021
web www.tomandcolegal.com.au

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Liability limited by a scheme approved under the Professional Standards Legislation

From: "MOUSSA, Pascal" <Pascal.MOUSSA@ndiscommission.gov.au>
Date: Wednesday, 5 July 2023 at 10:01 am
To: Tom Monks <tom@tomandcolegal.com.au>
Cc: "MCGRILLEN, Hilda" <Hilda.MCGRILLEN@ndiscommission.gov.au>
Subject: Extension for lodgement of T-Documents in Vida Reid (2023/3361) & Simon Reid (2023/3363) AAT matters [SEC=OFFICIAL]

Hi Tom

I refer to the above AAT matters of Mrs Vida Reid and Mr Simon Reid.

As you know, the NDIS Commission must lodge all documents required under section 37 of the AAT Act (T-Documents) by 7 July 2023.

The NDIS Commission has identified a voluminous amount of potentially relevant

documents in its holdings and is working at speed to review and collate them for lodgement. Unfortunately, this process is taking a considerable amount of time (given the significant number of documents located), and it is further complicated by the presence of legal advice and other confidential information in the documents. (The NDIS Commission will likely need to seek a confidentiality order over such material and is, accordingly, having to review the documents very carefully to ensure all confidential information is appropriately identified).

In light of these circumstances, the NDIS Commission will be seeking a short extension of two weeks (until 21 July 2023) for it to lodge the T-Documents in both matters listed above.

Could you please let me know by **COB today** whether you consent or object to the proposed extension as I will need to inform the AAT of your position when making the request for an extension. I contacted your office earlier this morning to speak with you, but was informed you were not available.

If you would prefer to discuss this matter via phone call, please feel free to give me a call today.

Kind regards

Pascal Moussa
Lawyer
Legal Services and Internal Integrity Division

NDIS Quality and Safeguards Commission

P: 02 9942 5726 | **E:** pascal.moussa@ndiscommission.gov.au
www.ndiscommission.gov.au

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AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

07/07/2023 - Adjournment/vacation of listing - response - R - no objection to vacate/relist

Received Document

Document Category	Administrative
Document Type	Adjournment/vacation of listing - response
Index Description	R - no objection to vacate/relist
Date Lodged	07/07/2023
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

Description / Comments

From: MOUSSA, Pascal <Pascal.MOUSSA@ndiscommission.gov.au>
Sent: Friday, 7 July 2023 12:25 PM
To: Tom & Co Legal <info@tomandcolegal.com.au>; Perth Registry <Perth.Registry@aat.gov.au>
Cc: MCGRILLEN, Hilda <Hilda.MCGRILLEN@ndiscommission.gov.au>
Subject: RE: URGENT 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice [SEC=OFFICIAL, ACCESS=Personal-Privacy]

EXTERNAL EMAIL
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Dear Natalie

I confirm the NDIS Commission has no objection to relisting the interlocutory hearing for 17 July 2023, and is able to attend on this date.

The NDIS Commission would be grateful if the Tribunal could please advise whether the deadline for making submissions (i.e. 12 July 2023) will consequentially be postponed too?

Kind regards
Pascal Moussa
Lawyer

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

07/07/2023 - Adjournment/vacation of listing - response - T - will vacate and relist for 17/07/23

Received Document

Document Category	Administrative
Document Type	Adjournment/vacation of listing - response
Index Description	T - will vacate and relist for 17/07/23
Date Lodged	07/07/2023
S.35 Order for this Document	No
Sender	
Case Party	No
Other	Yes
Case Party	
Other	AAT

Description / Comments

From: Perth Registry
Sent: Friday, 7 July 2023 2:09 PM
To: MOUSSA, Pascal <Pascal.MOUSSA@ndiscommission.gov.au>; Tom & Co Legal <info@tomandcolegal.com.au>
Cc: MCGRILLEN, Hilda <Hilda.MCGRILLEN@ndiscommission.gov.au>
Subject: RE: URGENT 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice [SEC=OFFICIAL, ACCESS=Personal-Privacy]

OFFICIAL
Personal privacy

Dear Parties,

Thank you for your emails below.

I confirm that the listing for Friday 14 July 2023 is vacated by consent and the hearing will be relisted for Monday 17 July at 1pm.

Could the parties please file submissions by close of business on Friday 14 July.

Listing notices will be sent out shortly.

Kind regards,

Natalie D s47E(c)
Senior Associate

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

10/07/2023 - Correspondence - T - will wait to hear from R before confirming

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	T - will wait to hear from R before confirming
Date Lodged	10/07/2023
S.35 Order for this Document	No
Sender	
Case Party	No
Other	Yes
Case Party	
Other	AAT
Description / Comments	From: Perth Registry Sent: Monday, 10 July 2023 12:06 PM To: Tom & Co Legal <info@tomandcolegal.com.au>; Commissioner of the NDIS Quality and Safeguards Commission <legal@ndiscommission.gov.au>; Pascal.MOUSSA@ndiscommission.gov.au Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL, ACCESS=Personal-Privacy] OFFICIAL Personal privacy Dear Mr Monks, Thank you for confirming your availability and I appreciate your understanding. The deadline for submissions will of course be extended, however I will wait to hear from Ms Moussa as to her availability before I confirm. Kind regards, Natalie D s47E(c) Senior Associate

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

11/07/2023 - Confirming Availability - R - TDH on 19/07/23

Received Document

Document Category	Administrative
Document Type	Confirming Availability
Index Description	R - TDH on 19/07/23
Date Lodged	11/07/2023
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

Description / Comments

From: MOUSSA, Pascal <Pascal.MOUSSA@ndiscommission.gov.au>
Sent: Tuesday, 11 July 2023 7:17 AM
To: Perth Registry <Perth.Registry@aat.gov.au>; Tom & Co Legal <info@tomandcolegal.com.au>
Cc: MCGRILLEN, Hilda <Hilda.MCGRILLEN@ndiscommission.gov.au>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL]

EXTERNAL EMAIL
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Dear Natalie

I confirm the NDIS Commission has no objection to the hearing being moved to 19th July 2023 at 1pm.

(Apologies, I did send this email yesterday - this morning I discovered that it failed to deliver and sat in my Outbox).

Kind regards
Pascal Moussa
Lawyer

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

11/07/2023 - Correspondence - T - confirm TDH 19/07 amended listing notices to be sent out

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	T - confirm TDH 19/07 amended listing notices to be sent out
Date Lodged	11/07/2023
S.35 Order for this Document	No
Sender	
Case Party	No
Other	Yes
Case Party	
Other	AAT
Description / Comments	From: Perth Registry <Perth.Registry@aat.gov.au> Sent: Tuesday, 11 July 2023 9:04 AM To: MOUSSA, Pascal <Pascal.MOUSSA@ndiscommission.gov.au>; Perth Registry <Perth.Registry@aat.gov.au>; Tom & Co Legal <info@tomandcolegal.com.au> Cc: MCGRILLEN, Hilda <Hilda.MCGRILLEN@ndiscommission.gov.au> Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL] OFFICIAL Dear Parties, Thank you for confirming. I appreciate you changing your schedules at short notice. Please provide your submissions by close of business on Monday 17 July. I will send out amended listing notices shortly. Kind regards, Natalie D s47E(c) Senior Associate

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

12/07/2023 - Adjournment/vacation of listing - response - R - no objection to vacate/relist

Received Document

Document Category	Administrative
Document Type	Adjournment/vacation of listing - response
Index Description	R - no objection to vacate/relist
Date Lodged	12/07/2023
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	
Description / Comments	From: MOUSSA, Pascal <Pascal.MOUSSA@ndiscommission.gov.au> Sent: Wednesday, 12 July 2023 1:28 PM To: Perth Registry <Perth.Registry@aat.gov.au>; vida Reid <vida_reid@yahoo.com> Cc: Tom Monks <tom@tomandcolegal.com.au>; Simon Reid <reid.simon4@gmail.com>; MCGRILLEN, Hilda <Hilda.MCGRILLEN@ndiscommission.gov.au> Subject: RE: 2023/3361 - Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice [SEC=OFFICIAL] EXTERNAL EMAIL "Do not click any links or open any attachments unless you trust the sender, are expecting this email and know the content is safe." Dear Natalie The NDIS Commission is agreeable to the matter being vacated and relisted at a time and date that is suitable for the applicants and the Tribunal. Kind regards Pascal Moussa Lawyer

From:	Moore, Sarah
To:	Perth Registry; info@tomandcolegal.com.au
Cc:	Young, Oliver; Roeger, Shauna
Subject:	Vida Reid & Simon Reid v Commissioner of the NDIS Quality and Safeguards Commission – AAT 2023/3361 & 2023/3363
Date:	Thursday, 13 July 2023 2:35:52 PM

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Dear Registry and Mr Monks

Vida Reid & Simon Reid v Commissioner of the NDIS Quality and Safeguards Commission – AAT 2023/3361 & 2023/3363

We advise that Oliver Young of AGS now has carriage of these matters, and will appear via telephone at the interlocutory hearing listed at 1pm (AWST) on Wednesday, 19 July 2023.

Please direct all future correspondence to Oliver at the following details:

Attention: Oliver Young
Australian Government Solicitor
Level 34, 600 Bourke Street
MELBOURNE VIC 3000
oliver.young@ags.gov.au
Telephone: 03 9242 1195

Regards
Sarah

Sarah Moore
Senior Legal Assistant
Australian Government Solicitor
T 07 336 05740
sarah.moore@ags.gov.au

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AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

18/07/2023 - Correspondence - T - request update on R submissions

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	T - request update on R submissions
Date Lodged	18/07/2023
S.35 Order for this Document	No
Sender	
Case Party	No
Other	Yes
Case Party	
Other	AAT
Description / Comments	From: Perth Registry Sent: Tuesday, 18 July 2023 12:08 PM To: Young, Oliver <Oliver.Young@ags.gov.au> Cc: Tom & Co Legal <info@tomandcolegal.com.au>; MOUSSA, Pascal <Pascal.MOUSSA@ndiscommission.gov.au> Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL] OFFICIAL Dear Mr Young, I refer to the above matter. I understand you have recently taken carriage of this matter from Ms Moussa at the NDIS Commission. The Tribunal has received correspondence from your office that you will be attending the Interlocutory hearing tomorrow at 1pm. I had previously invited the parties to provide any further submissions in support of their respective positions in relation to the extension of time to file the T-Documents in this matter (see email below). Could you please advise the Tribunal whether the Respondent still intends to file submissions for the Deputy President's consideration at the Interlocutory hearing tomorrow? If they are, I would be grateful if you could you please provide these to the Tribunal and the Applicant's representative by close of business today. Kind regards, Natalie D s47E(c) Senior Associate

From:	Mayne, Catherine
To:	Perth Registry
Cc:	Dickinson, Karlie; Dillon, Andrew
Subject:	20230718 | 2023/3361 Vida REID and 2023/3363 Simon REID v Commissioner of the NDIS Quality and Safeguards Commission | Our ref: 23004627 & 23004628 ... [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege] [AGSDMS-DMS.FID4932078]
Date:	Tuesday, 18 July 2023 12:10:58 PM

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Dear Registry,

Vida Reid & Simon Reid v Commissioner of the NDIS Quality and Safeguards Commission – AAT 2023/3361 & 2023/3363

We confirm we act on behalf of the respondent the NDIS Quality and Safeguards Commission.

We write to advise that Andrew Dillon of Australian Government Solicitor and will appear via telephone at the **interlocutory hearing listed at 1pm (AWST) on Wednesday, 19 July 2023.**

Andrew Dillon can be contacted at:

E: Andrew.dillon@ags.gov.au
T: s47F

We would also be grateful if you could please also dial in Pascal Moussa, Lawyer for NDIS Quality and Safeguards Commission.

Pascal Moussa can be contacted at:

T: s47F

We also confirm Karlie Dickinson of Australian Government Solicitor now has carriage of these matters. Please direct all future notices and correspondence to Karlie at the following details:

Attention: Karlie Dickinson
Australian Government Solicitor
Level 34, 600 Bourke Street
MELBOURNE VIC 3000
E: karlie.dickinson@ags.gov.au
T: 03 9242 1244

Should you have any queries please do not hesitate to contact us.

Yours sincerely,

Catherine Mayne
Senior Legal Assistant
Australian Government Solicitor

T 03 924 21228 **F** 03 9923 6034
catherine.mayne@ags.gov.au

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AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

18/07/2023 - Correspondence - Out of office - Pascal Moussa

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	Out of office - Pascal Moussa
Date Lodged	18/07/2023
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

	Reference
View	2023_3361 & 2023_3363 EMAIL - out of office reply.pdf

Description / Comments

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

18/07/2023 - Appearance details - R - update in carriage and appearance at IH 19/07/23

Received Document

Document Category	Administrative
Document Type	Appearance details
Index Description	R - update in carriage and appearance at IH 19/07/23
Date Lodged	18/07/2023
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

Description / Comments

From: Mayne, Catherine <Catherine.Mayne@ags.gov.au>
Sent: Tuesday, 18 July 2023 12:11 PM
To: Perth Registry <Perth.Registry@aat.gov.au>
Cc: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Dillon, Andrew <Andrew.Dillon@ags.gov.au>
Subject: 20230718 | 2023/3361 Vida REID and 2023/3363 Simon REID v Commissioner of the NDIS Quality and Safeguards Commission | Our ref: 23004627 & 23004628 ... [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege] [AGSDMS-DMS.FID4932078]

EXTERNAL EMAIL
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Legal Privilege

Dear Registry,

Vida Reid & Simon Reid v Commissioner of the NDIS Quality and Safeguards Commission - AAT 2023/3361 & 2023/3363

We confirm we act on behalf of the respondent the NDIS Quality and Safeguards Commission.

We write to advise that Andrew Dillon of Australian Government Solicitor and will appear via telephone at the interlocutory hearing listed at 1pm (AWST) on Wednesday, 19 July 2023.

Andrew Dillon can be contacted at:

E: Andrew.dillon@ags.gov.au
T: s47F [redacted]

We would also be grateful if you could please also dial in Pascal Moussa, Lawyer for NDIS Quality and Safeguards Commission.

Pascal Moussa can be contacted at:

T: s47F [redacted]

We also confirm Karlie Dickinson of Australian Government Solicitor now has carriage of these matters. Please direct all future notices and correspondence to Karlie at the following details:
Attention: Karlie Dickinson
Australian Government Solicitor
Level 34, 600 Bourke Street
MELBOURNE VIC 3000
E: karlie.dickinson@ags.gov.au
T: 03 9242 1244
Should you have any queries please do not hesitate to contact us.
Yours sincerely,

_____
Catherine Mayne
Senior Legal Assistant
Australian Government Solicitor
T 03 924 21228 F 03 9923 6034

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

18/07/2023 - Correspondence - T - to R re: IH on 19/07/23

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	T - to R re: IH on 19/07/23
Date Lodged	18/07/2023
S.35 Order for this Document	No
Sender	
Case Party	No
Other	Yes
Case Party	
Other	AAT

Description / Comments

From: Natalie D s47E(c)
Sent: Tuesday, 18 July 2023 12:44 PM
To: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Cc: Dillon, Andrew <Andrew.Dillon@ags.gov.au>
Subject: FW: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL]

OFFICIAL

Dear Ms Dickinson and Mr Dillon,

Thank you for your email in relation to an update in carriage in this matter and attendance details at the interlocutory hearing tomorrow. The Tribunal's records have been updated.

Please see below, email sent to Mr Young earlier in relation to submissions for the Interlocutory hearing.

Could you please advise the Tribunal whether submissions will be filed prior to tomorrow?

Kind regards,

Natalie D s47E(c)
Senior Associate

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

18/07/2023 - Correspondence - R - will make oral submissions at the IH

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	R - will make oral submissions at the IH
Date Lodged	18/07/2023
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

Description / Comments

From: Dillon, Andrew <Andrew.Dillon@ags.gov.au>
Sent: Tuesday, 18 July 2023 1:15 PM
To: Natalie Ds47E(c) <Natalie.Ds47E(c) aat.gov.au>
Cc: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL]

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Dear Ms Ds47E(c)

Thank you for your email.

Unless the Deputy President would prefer short written submissions, my intention is to only do oral submissions.

Please let me know the Deputy President's preference.

Many thanks

Andrew

_____
Andrew Dillon
A/g Senior Executive Lawyer

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

18/07/2023 - Correspondence - T - have advised the DP of oral submissions

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	T - have advised the DP of oral submissions
Date Lodged	18/07/2023
S.35 Order for this Document	No
Sender	
Case Party	No
Other	Yes
Case Party	
Other	AAT
Description / Comments	From: Natalie D[s47E(c)] <Natalie.D[s47E(c)]aat.gov.au> Sent: Tuesday, 18 July 2023 5:33 PM To: Dillon, Andrew <Andrew.Dillon@ags.gov.au> Cc: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au> Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL] OFFICIAL Dear Mr Dillon, Oral submissions are fine, I have advised the Deputy President. Kind regards, Natalie D[s47E(c)] Senior Associate

From:	Dickinson, Karlie
To:	Perth Registry; info@tomandcolegal.com.au
Cc:	Dickinson, Karlie
Subject:	20230807 AAT Applications - 2023/3361 Vida Reid | 2023/3363 Simon Reid | 2023/4494 Forward Focussed Group Pty Ltd and Commissioner of NDIS Quality and Safeguards Commission | Our ref 23001627 ... [SEC=OFFICIAL:Sensitive, ACCE... [AGSDMS-DMS.FID4932078]
Date:	Monday, 7 August 2023 2:57:06 PM
Attachments:	20230807 Ltr to AAT and Applicant - 23001627.pdf

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AAT Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (AAT no. 2023/3361); Simon REID and Commissioner of the NDIS Quality and Safeguards Commission (AAT no.2023/3363); Forward Focussed Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission (AAT no.2023/4494)

Dear Registrar and Mr Monks,

Please see attached correspondence in relation to the above proceedings.

Kind regards,

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **F** 03 9923 6034
karlie.dickinson@ags.gov.au

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From:	Perth Registry
To:	info@tomandcolegal.com.au
Cc:	Dickinson, Karlie; Perth Registry
Subject:	RE: 20230807 AAT Applications - 2023/3361 Vida Reid | 2023/3363 Simon Reid | 2023/4494 Forward Focussed Group Pty Ltd and Commissioner of NDIS Quality and Safeguards Commission | Our ref 23001627 [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]
Date:	Monday, 7 August 2023 3:09:35 PM
Importance:	High

OFFICIAL: Sensitive
Legal privilege

Dear Mr Monks

Please provide the Applicant's position regarding this request at your earliest opportunity.

Kind regards

Jessica P
(she/her)
Senior Tribunal Officer

Administrative Appeals Tribunal
NDIS Division
Perth Registry
T: 1800 228 333
E: perth.registry@aat.gov.au

Please note I do not work Tuesdays.

www.aat.gov.au

From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Sent: Monday, 7 August 2023 2:57 PM
To: Perth Registry <Perth.Registry@aat.gov.au>; info@tomandcolegal.com.au
Cc: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: 20230807 AAT Applications - 2023/3361 Vida Reid | 2023/3363 Simon Reid | 2023/4494 Forward Focussed Group Pty Ltd and Commissioner of NDIS Quality and Safeguards Commission | Our ref 23001627 ... [SEC=OFFICIAL:Sensitive, ACCE... [AGSDMS-DMS.FID4932078]

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Commissioner of the NDIS Quality and Safeguards Commission (AAT no.2023/4494)

Dear Registrar and Mr Monks,

Please see attached correspondence in relation to the above proceedings.

Kind regards,

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **F** 03 9923 6034
karlie.dickinson@ags.gov.au

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Our ref. 23001627

7 August 2023

Administrative Appeals Tribunal
Perth Registry
Level 13, 111 St Georges Terrace
PERTH WA 6000
By email only: perth.registry@aat.gov.au

Tom Monks
Principal Director
Tom & Co Legal Pty Ltd
PO Box 25567
PERTH WA 6000

By email only: info@tomandcolegal.com.au

Dear Registrar and Mr Monks

AAT Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (AAT no. 2023/3361); Simon REID and Commissioner of the NDIS Quality and Safeguards Commission (AAT no.2023/3363); Forward Focussed Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission (AAT no.2023/4494)

The Respondent was directed, by Deputy President Mischin on 19 July 2023 to file their Tribunal documents in the three applications listed above today and has prepared the documents, together with proposed section 35 confidentiality applications accordingly.

In the interim however, we have sought to engage with the applicants' representatives with a view to these applications being stayed pending ongoing criminal proceedings. Indeed DP Mischin encouraged the parties to have these discussions.

We have today heard that the applicant is meeting with her legal representatives this week and the issue of a stay will be raised at that time. Accordingly, the Respondent requests a short extension, until Monday 14 August 2023 to lodge the Tribunal documents, by which time the Respondent expects to know whether a stay will be requested or not.

If however the Tribunal would be assisted by receiving the Tribunal documents before the question of a stay is discussed between the parties, the Respondent is happy to lodge them.

Please contact us if you would like to discuss.

Yours sincerely



Karlie Dickinson
Senior Lawyer
T 03 9242 1244
karlie.dickinson@ags.gov.au

ADMINISTRATIVE APPEALS TRIBUNAL
NATIONAL DISABILITY INSURANCE SCHEME DIVISION
PERTH REGISTRY **2023/3361; 2023/3363; 2023/4494**

VIDA REID
SIMON REID
FORWARD FOCUSSED GROUP
Applicants

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

REQUEST FOR CONFIDENTIALITY ORDERS UNDER SECTION 35 OF THE *ADMINISTRATIVE APPEALS TRIBUNAL ACT* 1975

Orders sought:

Under s 35(4) of the *Administrative Appeals Tribunal Act 1975* (Cth) (AAT Act), the Administrative Appeals Tribunal (the Tribunal) directs in the above proceedings:

1. because the T-documents … and … are subject to ongoing criminal proceedings and/or legal professional privilege, the documents are not subject to disclosure requirements under s 37(1)(b) of the AAT Act, and that the disclosure of these T-documents to the applicant or the public at large is prohibited;

2. because the **redacted text** in section … of T-document … (on pages … and … of the T-Docs Bundle is subject to legal professional privilege, the production of the contents of the redacted text to the applicant or the public at large is prohibited; and

3. because the T- document bundles are the subject to ongoing criminal proceedings, the disclosure of these documents to the public at large is prohibited (parties to have liberty to apply to amend this order); and

4. because of their likelihood to prejudice criminal proceedings and/or that legal professional privilege applies there be no publication or disclosure in the Tribunal's decision that reveals the contents of the T-documents … and ….nor the redacted text in section …..of T-document….(on pages…..and….of the T- Docs bundle) nor any of the T-document bundles that remain subject to order 2 above.

Date: 8 August 2023

Andrew Dillon
a/g Senior Executive lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent

Lodged on behalf of the Respondent
Contact: Karlie Dickinson

The Australian Government Solicitor
4 National Circuit
Barton ACT 2600
DX 5678 Canberra

File ref: 23004627
Telephone: 03 9244 1244
E-mail: Karlie.dickinson@ags.gov.au

Our ref. 23004627

8 August 2023

Administrative Appeals Tribunal
Perth Registry
Level 13, 111 St Georges Terrace
PERTH WA 6000
By email only: perth.registry@aat.gov.au

Tom Monks
Principal Director
Tom & Co Legal Pty Ltd
PO Box 25567
PERTH WA 6000

By email only: info@tomandcolegal.com.au

Dear Registrar and Mr Monks

AAT Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (AAT no. 2023/3361); Simon REID and Commissioner of the NDIS Quality and Safeguards Commission (AAT no.2023/3363); Forward Focussed Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission (AAT no.2023/4494)

Please find enclosed Tribunal documents, as directed by order of Deputy President Mischin on 19 July 2023.

At the outset, please note that the respondent has prepared the Tribunal documents in accordance with the direction that "the evidence in any one application, subject to relevance, be taken as evidence in the other applications".

In practical terms this means that the first applicant's Tribunal document bundle contains the documents the respondent submits are relevant to the first applicant, in addition to documents that the respondent considers relevant to the first applicant and one or both of the other applicants. The second and third applicants' Tribunal documents contain documents relevant to that applicant alone.

Section 35 application and proposed orders/ Request for direction limiting public access

Please find enclosed a proposed order that the respondent seeks from the Tribunal in relation to, separately provided, documents.

By way of context, the first applicant is currently the subject of a criminal prosecution which is next listed on **3 November 2023**. In these circumstances, the respondent

has provided the Tribunal documents in a form that, it is submitted, is appropriate for the applicants and the Tribunal to view but not the public at this stage. For example, the respondent has included prosecution witness statements, noting that this information has been provided previously to the first applicant. However, given that these witnesses have not given evidence in the criminal proceedings or been reported to be associated with those proceedings, the respondent is not of the view that these statements should be available to the public. It is appreciated that this position is likely to change as the criminal proceedings progress and that as a result, any direction proceeded by the Tribunal in this regard will need to be reviewed in time.

In light of these criminal proceedings, the respondent is seeking specific orders in relation to a small number of documents as set out in the section 35 application. More generally, however, the respondent is seeking an order from the Tribunal that the Tribunal documents, in their entirety, are not to be made available to the public at this stage.

In the event that the Tribunal is not minded to make an order prohibiting public disclose of the Tribunal documents, we would welcome the opportunity to provide an amended set of Tribunal documents clearly marking information that we would submit would be appropriate for viewing by the public at large.

Proposed stay

Finally, DP Mischin suggested, at the earlier directions hearing, that the parties consider and discuss the possibility of these applications being stayed pending the outcome of the criminal proceedings. By way of update and despite invitations to do so, we have not had a response from the applicants' representatives as to whether or not they wish to apply to have these proceedings stayed pending the outcome of those criminal charges.

We would welcome a further discussion about the practicalities of progressing with these applications given the potential to prejudice the criminal proceedings (and the first applicant's rights) in the event that this matter is listed for a further directions hearing.

Please contact us if you would like to discuss.

Yours sincerely

Karlie L Dickinson

Karlie Dickinson
Senior Lawyer
T 03 9242 1244
karlie.dickinson@ags.gov.au

From:	Dickinson, Karlie
To:	Perth Registry
Subject:	RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL] [AGSDMS-DMS.FID4932078]
Date:	Tuesday, 8 August 2023 12:39:27 PM

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Dear Jessica (if I may)

We apologise we are just having a few difficulties uploading the documents to which the orders relate as the sensitive material is being redacted (entirely) as we seek to upload the document.

We are working through the problem with our IT department at the moment and anticipate the document bundle, to which the application relates will be with the Tribunal imminently.

Many apologies for this delay.

Best wishes

Karlie

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **F** 03 9242 1333
karlie.dickinson@ags.gov.au

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From: Perth Registry <perth.registry@aat.gov.au>
Sent: Tuesday, 8 August 2023 2:36 PM
To: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy] [SEC=OFFICIAL]

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Dear Ms Dickinson,

The Tribunal received the attached Request for Confidentiality Orders for reviews 2023/3361; 3363 and 4494.

Can you please confirm that the request is complete? It does not appear to identify the documents; sections and pages of the T-Documents over which the Order is sought.

Yours sincerely

Jessica P
Tribunal Officer

Administrative Appeals Tribunal
Registry
T: 08 6222 7200 F: 08 6222 7299
E: perth.registry@aat.gov.au

www.aat.gov.au

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To:	Perth Registry
Subject:	RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL] [AGSDMS-DMS.FID4932078]
Date:	Tuesday, 8 August 2023 3:20:56 PM

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Dear Registrar

Just to confirm, we have lodged the documents which accompany this application through the portal within the last few minutes, with apologies we had significant difficulty uploading the documents in a form that was accessible.

Best wishes

Karlie

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **F** 03 9242 1333
karlie.dickinson@ags.gov.au

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Karlie

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Yours sincerely

Jessica P
Tribunal Officer

Administrative Appeals Tribunal
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From: Dickinson, Karlie
To: Tom & Co Legal; Perth Registry
Subject: RE: 20230807 AAT Applications - 2023/3361 Vida Reid | 2023/3363 Simon Reid | 2023/4494 Forward Focussed Group Pty Ltd and Commissioner of NDIS Quality and Safeguards Commission | Our ref 23001627 [[SEC=OFFICIAL:Sensitive, ACC... [AGSDMS-DMS.FID4932078]
Date: Tuesday, 8 August 2023 3:31:58 PM

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Dear Registrar and Mr Monks

We apologise for any confusion.

We confirm that all Tribunal documents have now been lodged.

Given our correspondence sent to Mr Monks yesterday regarding a proposed short extension of time for filing T-documents appears not to have been received, we would be grateful to Mr Monks if he would please confirm the email address below is correct and that he is receiving our emails.

Yours sincerely

Karlie

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **F** 03 9242 1333
karlie.dickinson@ags.gov.au

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Sent: Monday, 7 August 2023 8:44 PM
To: Perth Registry <Perth.Registry@aat.gov.au>
Cc: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: Re: 20230807 AAT Applications - 2023/3361 Vida Reid | 2023/3363 Simon Reid | 2023/4494 Forward Focussed Group Pty Ltd and Commissioner of NDIS Quality and Safeguards Commission | Our ref 23001627 [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege] [SEC=OF...

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Dear Registrar

We did not consent to further extension of time to produce the Tribunal documents.

To assist the Tribunal, **attached** is our email that was sent to Ms Dickinson informing the Australian Government Solicitors (**AGS**) that we will be seeking instructions in relation to the matter being stayed.

The email was sent to the AGS as a courtesy to inform them that we will be meeting with our client.

For the avoidance of doubt, the email did not include any consent, whether implied or expressed, for the extension of time to produce.

In addition to the above, the Respondent did not make any attempt to confer with us in relation to the extension of time and used the issue of the proceedings to stay to subvert the Tribunal's direction.

We are deeply concerned at the ongoing contravention and disregard by the Respondent, especially in light of Deputy President Mischin's specific Directions for the Respondent to lodge with the Tribunal the section 37(1) documents.

In light of the Respondent's ongoing appetite to contravene the Tribunal's Directions, our clients instruct us to seek the matter to be listed for a non-compliance Directions Hearing.

Kind regards

Tom Monks | Legal Practitioner Director
LPN 5512580
phone +61 (08) 6255 5737
email tom@tomandcolegal.com.au
office 45 Delawney Street, Balcatta, WA 6021
web www.tomandcolegal.com.au

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From: Perth Registry <Perth.Registry@aat.gov.au>
Date: Monday, 7 August 2023 at 3:09 pm
To: Tom & Co Legal <info@tomandcolegal.com.au>
Cc: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>, Perth Registry <Perth.Registry@aat.gov.au>
Subject: RE: 20230807 AAT Applications - 2023/3361 Vida Reid | 2023/3363 Simon Reid | 2023/4494 Forward Focussed Group Pty Ltd and Commissioner of NDIS Quality and Safeguards Commission | Our ref 23001627 [SEC=OFFICIAL:Sensitive,

ACCESS=Legal-Privilege] [SEC=OF...

OFFICIAL: Sensitive
Legal privilege

Dear Mr Monks

Please provide the Applicant's position regarding this request at your earliest opportunity.

Kind regards

Jessica P
(she/her)
Senior Tribunal Officer

Administrative Appeals Tribunal
NDIS Division
Perth Registry
T: 1800 228 333
E: perth.registry@aat.gov.au

Please note I do not work Tuesdays.

www.aat.gov.au

From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Sent: Monday, 7 August 2023 2:57 PM
To: Perth Registry <Perth.Registry@aat.gov.au>; info@tomandcolegal.com.au
Cc: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: 20230807 AAT Applications - 2023/3361 Vida Reid | 2023/3363 Simon Reid | 2023/4494 Forward Focussed Group Pty Ltd and Commissioner of NDIS Quality and Safeguards Commission | Our ref 23001627 ... [SEC=OFFICIAL:Sensitive, ACCE... [AGSDMS-DMS.FID4932078]

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AAT Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (AAT no. 2023/3361); Simon REID and Commissioner of the NDIS Quality and Safeguards Commission (AAT no.2023/3363); Forward Focussed Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission (AAT no.2023/4494)

Dear Registrar and Mr Monks,

Please see attached correspondence in relation to the above proceedings.

Kind regards,

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **F** 03 9923 6034
karlie.dickinson@ags.gov.au

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From: Mayne, Catherine
To: Perth Registry
Cc: Dickinson, Karlie
Subject: 20230810 Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (AAT no. 2023/3361) ... [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege] [AGSDMS-DMS.FID4932078]
Date: Thursday, 10 August 2023 8:38:34 AM
Importance: High

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Dear Registrar,

We refer to the Tribunal Documents filed in this in proceeding on Tuesday 8 August 2023 at 1.38pm AEST (ref D3WDJV).

Administrative Appeals Tribunal

Online reference number: **D3WDJV**

ADMINISTRATIVE APPEALS TRIBUNAL

The AAT has received the documents you sent us.

Case/review number: 2023/3361
Applicant: Reid
Document sent: 8 August 2023 1:38:42 PM ACT time (UTC+10:00)

Document type	File name	Description
T-document	s22	
T-document		
T-document		

This is a system generated email. Please do not reply to this email. If you need more information please visit our website.

Administrative Appeals Tribunal

We advise that we were in the process of serving on the applicant and realised that the Tribunal Documents contained 3 documents that should not have been included and are confidential to another criminal investigation. We also confirm that we have *not served* this bundle of Tribunal Documents on the applicant.

We kindly request that the Tribunal discard the entire bundle of documents filed on 8 August at 1.38pm (ref: D3WDJV) so we may refile a fresh bundle today in its place.

We apologise for the inconvenience caused.

Catherine Mayne
Senior Legal Assistant
Australian Government Solicitor
T 03 924 21228 **F** 03 9923 6034
catherine.mayne@ags.gov.au

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From:	Dickinson, Karlie
To:	Perth Registry
Subject:	RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL] [AGSDMS-DMS.FID4932078]
Date:	Wednesday, 9 August 2023 7:29:15 PM
Attachments:	Disclosable Index to confidentiality application(48829815.1).pdf

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Dear Registry

We write in relation to your email notifying us of incomplete information in relation to the proposed confidentiality orders. In light of the number of documents that the Respondent seeks to withhold from disclosure to the applicant (numbers 1 – 9 on the enclosed table), together with the number of documents containing some redacted information, we have prepared the attached disclosable index for your consideration.

If the Tribunal is assisted by this document and content for us to do so, we would be happy to amend the proposed orders to reference this table rather than attempting to include all of the information in the table into the proposed orders. If however the Tribunal's preference is for all of this information to be set out in the proposed orders, please let us know and will attend to this urgently.

Yours sincerely

Karlie Dickinson

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **F** 03 9242 1333
karlie.dickinson@ags.gov.au

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From: Perth Registry <perth.registry@aat.gov.au>
Sent: Wednesday, 9 August 2023 5:23 PM
To: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy] [SEC=OFFICIAL]

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Dear Ms Dickinson,

The Tribunal received the attached Request for Confidentiality Orders for reviews 2023/3361; 3363 and 4494.

The Tribunal believes the document is incomplete. Please update the document with the identifying documents, page numbers and sections so that the request can be sent to the Applicants for comment.

Yours sincerely

Jessica P
Tribunal Officer

Administrative Appeals Tribunal
Registry
T: 08 6222 7200 F: 08 6222 7299
E: perth.registry@aat.gov.au

www.aat.gov.au

Please refer to the AAT website for information about temporary changes in place to respond to the impact of COVID-19 on services, including special measures practice directions: http://www.aat.gov.au/impact-of-coronavirus-covid-19-on-our-services.

The AAT will not usually send a hard copy of any document sent to you by email, unless you request that we do so.

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ADMINISTRATIVE APPEALS TRIBUNAL
NATIONAL DISABILITY INSURANCE SCHEME DIVISION
PERTH REGISTRY **2023/3361 | 2023/3363 | 2023/4494**

VIDA REID

SIMON REID

FORWARD FOCUSED GROUP PTY LTD
Applicant

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

INDEX – CONFIDENTIAL AND REDACTED TRIBUNAL DOCUMENTS

Document No	Date	Document Description	T Doc Page
		Seeking confidentiality over the entirety of the following documents – they have not been disclosed to the applicants in the T Document bundles	
1.	18/8/2022		N/A
2.	20/2/2023		N/A
3.	13/3/2023		N/A
4.	18/8/2022		N/A
5.	18/8/2022		N/A
6.	18/8/2022		N/A
6.1	16/8/2022		N/A
7.	15/11/2022		N/A
8.	undated		N/A
9.	13/10/2022		N/A
		Documents containing proposed redactions. They have been provided with the proposed redactions to the applicants as referenced by their 'T' number	
10.	undated	T05. PDMS (EC22-002000) - Attachment 01A - Evidence Matrix	Repeat of doc 13 below
11.	24/6/2022	T24. PDMS (EC22-002000) - Attachment 43 - Email from to Rejaul Alam dated 24 June 2022	Repeat of doc 27 below

Document No	Date	Document Description	T Doc Page
12.	19/10/2022	T09. Briefing Note (EC22-002000) relating to notice of intention to make banning order (listing schedule of attachments)	160 - 163
13.	undated	T09.01 Attachment 01A - Evidence Matrix	165
14.	undated	T09.03 Attachment 01C - Evidence Matrix	170 - 174
15.	undated	T09.04 PDMS (EC22-002000) - Attachment 01D - NDIS Commission Investigation's Considerations	178-182
16.	undated	T09.09 Attachment 06 - Key Issues Potential Breaches re FFG Vida Reid	211-216
17.	undated	T09.10 Attachment 06A - Consideration of Evidence Information	221-224
18.	undated	T09.11 Attachment 07 - Statement	225 -238
19.	undated	T09.14 Attachment 09A – Information (Part 1)	245-251
20.	undated	T09.15 - Attachment 09B - Information (Part 2)	294 - 323
21.	undated	T09.16 Attachment 09C – Information (Part 3)	324-325
22.	undated	T09.17 Attachment 09D - Information (Part 4)	374, 380-381
23.	undated	T09.18 Attachment 09E - Information (Part 5)	420
24.	19/7/2022	T09.20 Attachment 10 - Email	424-432
25.	15/7/2022	T09.21 Attachment 12 - Complaint	433-441
26.	12/8/2022	T09.22 Attachment 13 - Complaint	442-453
27.	undated	T09.23 Attachment 14 – Summary of complaints made to NDIS Commission	454-455
28.	24/6/2022	T09.51 Attachment 43 - Email	497
29.	3/5/2022	T09.56 Attachment 48 - Email	508
30.	9/6/2022	T09.58 Attachment 49 - Email	509
31.	31/3/2022	T09.60 Attachment 53 - Email	513-515
32.	undated	T44 PDMS (EC22-002103) Attachment M NDIS Commission Evidence Summary - Forward Focus Group	1024-1029

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

31/08/2023 - Appearance details - R - Int. Hearing, 12/09 at 10.00am

Received Document

Document Category	Administrative
Document Type	Appearance details
Index Description	R - Int. Hearing, 12/09 at 10.00am
Date Lodged	31/08/2023
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

	Reference
View	Vida Reid Simon Reid Forward Focus Group Pty Ltd v Commissioner of the NDIS Quality and Safeguards Commission - AAT 2023_3361 - R - Appearance Details.pdf

Description / Comments

Dear Registry,

Vida Reid, Simon Reid & Forward Focus Group Pty Ltd v Commissioner of the NDIS Quality and Safeguards Commission - AAT 2023/3361

We confirm we act on behalf of the respondent the NDIS Quality and Safeguards Commission.

We write to advise that Andrew Dillon of Australian Government Solicitor and will appear via telephone at the interlocutory hearing listed at 10 am (AWST) on Tuesday 12 September 2023.

Andrew Dillon can be contacted at:

E: Andrew.dillon@ags.gov.au
T: s47F [redacted]

We would also be grateful if you could please also dial in Hilda Mc Grillen and Pascal Moussa, Lawyers for NDIS Quality and Safeguards Commission.

Hilda McGrillen can be contacted at:

T: s47F [redacted]

Pascal Moussa can be contacted at:

T: s47F [redacted]

Finally, if it were possible to see a copy of the Tribunal's correspondence sent to Tom Howe & Co dated 10 August 2023 outlining the Respondent's section 35 application (which is subsequently referred to in the response from Tom Howe opposing the application), we would be grateful.
Should you have any queries please do not hesitate to contact us.
Yours sincerely,

_____

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 F 03 9242 1333
karlie.dickinson@ags.gov.au

From:	Dickinson, Karlie
To:	Perth Registry
Cc:	Dillon, Andrew
Subject:	Vida Reid, Simon Reid & Forward Focus Group Pty Ltd v Commissioner of the NDIS Quality and Safeguards Commission – AAT 2023/3361 [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege] [AGSDMS-DMS.FID4932078]
Date:	Thursday, 31 August 2023 9:44:02 AM

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Dear Registry,

Vida Reid, Simon Reid & Forward Focus Group Pty Ltd v Commissioner of the NDIS Quality and Safeguards Commission – AAT 2023/3361

We confirm we act on behalf of the respondent the NDIS Quality and Safeguards Commission.

We write to advise that Andrew Dillon of Australian Government Solicitor and will appear via telephone at the **interlocutory hearing listed at 10 am (AWST) on Tuesday 12 September 2023.**

Andrew Dillon can be contacted at:

E: Andrew.dillon@ags.gov.au
T: s47F

We would also be grateful if you could please also dial in Hilda Mc Grillen and Pascal Moussa, Lawyers for NDIS Quality and Safeguards Commission.

Hilda McGrillen can be contacted at:

T: s47F

Pascal Moussa can be contacted at:

T: s47F

Finally, if it were possible to see a copy of the Tribunal's correspondence sent to Tom Howe & Co dated 10 August 2023 outlining the Respondent's section 35 application (which is subsequently referred to in the response from Tom Howe opposing the application), we would be grateful.

Should you have any queries please do not hesitate to contact us.

Yours sincerely,

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **F** 03 9242 1333
karlie.dickinson@ags.gov.au

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AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

05/09/2023 - Correspondence - T - Fwd copy of Applicant's submissions

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	T - Fwd copy of Applicant's submissions
Date Lodged	05/09/2023
S.35 Order for this Document	No
Sender	
Case Party	No
Other	Yes
Case Party	
Other	AAT

	Reference
View	230717 - Applicants Submission for Interlocutory Hearing.pdf

Description / Comments

From: Perth Registry
Sent: Tuesday, 5 September 2023 9:54 AM
To: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: RE: Vida Reid, Simon Reid & Forward Focus Group Pty Ltd v Commissioner of the NDIS Quality and Safeguards Commission - AAT 2023/3361 [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

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Dear Karlie,

Please find attached the Applicant's submissions in response to the opposition of the Respondent's request for confidentiality.

Kind regards,

Natalie D s47E(c)
Senior Associate

IN THE ADMINISTRATIVE APPEALS TRIBUNAL
PERTH REGISTRY

AAT NO. 2023/3361
And
2023/3363

NATIONAL DISABILITY INSURANCE SCHEME DIVISION

BETWEEN

VIDA REID
APPLICANT

SIMON REID
APPLICANT

AND

COMMISSIONER of the NDIS QUALITY and SAFEGUARDS COMMISSION
RESPONDENT

APPLICANTS' SUBMISSION

1. The Applicants (Ms Vida Reid and Mr Simon Reid) opposed the Respondent's extension of time application to lodge the T-Documents.

Background

1. On 19 October 2022, the original decision-maker at the NDIS Quality and Safeguards Commission ('**the NDIS Commission'**) issued Ms Vida Reid with a notice of intention to make a banning order.

2. On 19 October 2022, the NDIS Commission wrote to our client advising that the registration of FFG had been suspended for 30 days with the intention of revoking the registration and making a banning order stating, '*The evidence supporting the proposed banning of Mrs Reid and the regulatory actions against FFG was similar or overlapped considerably*.'

3. On 19 October 2022, the NDIS Commission offered Ms Reid the opportunity to make a submission by 16 November 2022 on the proposed revocation of registration and a banning order.

4. 31 October 2022, we requested the NDIS Commission's full disclosure of the information relied on for the proposed revocation of registration and banning order.

5. On 15 November 2022, the NDIS Commission declined to provide disclosure on the basis that it was satisfied the evidence supporting the various regulatory actions against Ms Reid had been adequately disclosed in the notices dated 19 October 2022.

6. On 18 November 2022, Mr Reid received notice from the NDIS Commission giving him the opportunity to make submissions about a proposed banning order.

7. On 30 November 2022, we submitted to the NDIS Commission a separate response for Ms Vida Reid and Mr Simon Reid (collectively known as '**the Applicants**').

8. On 20 December 2022, the NDIS Commission made a banning order against Ms Reid, prohibiting her from providing support and services, directly or indirectly, to NDIS-funded participants for a period of 5 years, under section 73ZN(2)(a)(i) of the *National Disability Insurance Scheme Act 2013* (Cth) ('**NDIS Act'**).

9. On 21 December 2022, the original decision-maker made a banning order against Mr Reid, prohibiting him from providing support and services, directly or indirectly, to NDIS-funded participants for a period of 5 years, under section 73ZN(2)(a)(iii) *NDIS Act.*

10. On 25 January 2023, the Applicants requested an internal review of the decision to the banning order.

11. On 6 February 2023, the NDIS Commission emailed us a letter of acknowledgement in relation to the request for an internal review.

12. On 22 March 2023, the NDIS Complaints Commissioner informed us that in the course of conducting the internal review, they had become aware of information not considered by the original delegate.

13. It was later disclosed that this 'new' material was a sworn statement by a former employee of FFG, Ms Cassandra Burke, dated 16 February 2023.

14. On 22 March 2023, the NDIS Complaints Commissioner provided us with a copy of the new information and informed us of its intention to vary the banning order against the Applicants in light of such material.

15. On 21 April 2023, the NDIS Complaints Commissioner issued a varied banning order to broaden the scope of the banning order to the Applicants.

16. The banning order made on 20 December 2022 (and varied on 21 April 2023) remains in place until 12.00 am on 21 December 2027 (AWST).

OBJECTIONS TO AN EXTENSION OF TIME

17. The Applicants do not consent to an extension of time being given to the NDIS Commission to provide the T-documents.

18. The NDIS Commission has received information relied on as evidence to issue the banning order against the Applicants since 19 October 2022.

19. An internal review on 22 March 2023 revealed one additional evidence relied upon varied the original decision.

20. On 10 May 2023, the Applicants lodged the Applications for Review of Decision.

21. 29 May 2023, the NDIS Commission sought an extension of time to provide the T-Documents.

22. The Applicants did not oppose the first extension of time.

23. On 13 June 2023, the AAT ordered the Respondent to provide the Applicant with the T-Documents to the Applicants by no later than 7 July 2023.

24. The Respondent requests an extension of time on 5 July 2023, two days before the T-Documents were due.

25. The Respondent had sufficient time to communicate with the Applicants since the extension of time was given on 13 June 2023.

26. The Respondent had sufficient time to address their concerns in relation to the review of the materials to be provided in the T-Documents knowing that they will be required to be disclosed.

27. The Applicants considered this further delay of the T-Documents to be prejudicial and will materially impact the finances of the Applicants to undertake work within the human services sector.

28. The Applicants contend that the broad scope of the Respondent's banning orders has adversely encroached on Mr Reid's ability to work or provide services to the community as it may inadvertently overlap with the banning order.

29. Corollary to the above paragraph, any further delay of the proceedings will be detrimental to the Applicants and place them in a significant hardship.

30. Therefore, the Applicants oppose the extension of time for the T-Documents and seek orders for the Respondent to comply with the Tribunal's directions dated 13 June 2023.

For the Applicants

Tom & Co Legal

Dated: 17 July 2023

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

12/09/2023 - Appearance details - R - Int. Hearing, 12/09 at 10.00am

Received Document

Document Category	Administrative
Document Type	Appearance details
Index Description	R - Int. Hearing, 12/09 at 10.00am
Date Lodged	12/09/2023
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

	Reference
View	Vida Ried and Ors - Commissioner of the NDIS Quality and Safeguards Commission 2023_3361 2023_3363 and 2023_4494 - Appearance at todays Interlocutory Hearing.pdf

Description / Comments

Good morning

We refer to the above matter and to the Interlocutory hearing scheduled for this morning.

We advise that Mr Oliver Young will be appearing on behalf of the respondent, he can be contacted on 03 9242 1195.

Kind regards

_____

Kayla Winship
Senior Legal Assistant
Australian Government Solicitor
T 03 9242 1375
kayla.winship@ags.gov.au
Find out more about AGS at http://www.ags.gov.au

From:	Winship, Kayla
To:	Perth Registry
Cc:	Young, Oliver; Dickinson, Karlie
Subject:	Vida Ried & Ors v Commissioner of the NDIS Quality and Safeguards Commission 2023/3361, 2023/3363 & 2023/4494 - Appearance at today"s Interlocutory Hearing [SEC=OFFICIAL] [AGSDMS-DMS.FID4932078]
Date:	Tuesday, 12 September 2023 7:26:28 AM
Importance:	High

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OFFICIAL

Good morning

We refer to the above matter and to the Interlocutory hearing scheduled for this morning.

We advise that Mr Oliver Young will be appearing on behalf of the respondent, he can be contacted on 03 9242 1195.

Kind regards

Kayla Winship
Senior Legal Assistant
Australian Government Solicitor
T 03 9242 1375
kayla.winship@ags.gov.au
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2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

12/09/2023 - Correspondence - R - reply to A request to adjourn IH

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	R - reply to A request to adjourn IH
Date Lodged	12/09/2023
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

Description / Comments

From: Young, Oliver <Oliver.Young@ags.gov.au>
Sent: Tuesday, 12 September 2023 9:29 AM
To: Tom Monks <tom@tomandcolegal.com.au>; Perth Registry <Perth.Registry@aat.gov.au>
Subject: RE: 2023/3361, 2023/3363 & 2023/4494 - Vida Ried & Ors v Commissioner of the NDIS Quality and Safeguards Commission - Submissions [AGSDMS-DMS.FID4932078]
Importance: High

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Dear Registrar

ATTENTION: Deputy President Mischin

Noting that the respondent does not agree that the lodging of submissions is "highly prejudicial" to the applicant, and that the submissions were filed to assist the Tribunal, the parties have now conferred.

Subject to the Tribunal's approval, the parties request that the hearing at midday today be adjourned to allow the applicant time to file written submissions by 26 September 2023 and for the respondent to have a right of reply, to be filed by 3 October 2023.

In the circumstances, can you please let the parties know whether the hearing scheduled for midday today has been adjourned.

Regards
Oliver

Oliver Young
Senior Executive Lawyer (A/g)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

12/09/2023 - Correspondence - R - Out of office reply

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	R - Out of office reply
Date Lodged	12/09/2023
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	
Description / Comments	From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au> Sent: Tuesday, 12 September 2023 1:25 PM To: Perth Registry <Perth.Registry@aat.gov.au> Subject: Automatic reply: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy] [SEC=OFFICIAL] EXTERNAL EMAIL "Do not click any links or open any attachments unless you trust the sender, are expecting this email and know the content is safe." I am out of office for the remainder of this week. For urgent assistance, please contact Kayla Winship on 03 924 21375 or at email: Kayla.Winship@ags.gov.au Best wishes Karlie

Administrative Appeals Tribunal

Document Submission

Reference Number: **Q47H4C**

Submission Date and Time: **11 Oct 2023 2:44:12 PM AEDT (UTC+11:00)**

Send us your documents online

Your details

AAT case/review number

2023/3361

Applicant name

Reid

Your role

Respondent representative

Your name

Irfana Sirguroh

Your email address

irfana.sirguroh@ags.gov.au

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Comments (maximum 150 characters)

Are you sending us Section 37 documents (T-documents) on behalf of the agency, organisation or person who made the decision we are reviewing? *

( ) Yes (•) No

Documents

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- .pdf (PDF files),
- .rtf (RTF files),
- .xls and .xlsx (Microsoft Excel files).

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The maximum size for any single file is 15MB. The maximum size for all documents is 100MB.

Document 1

Document type *

Other

Description (maximum 150 characters) *

Letter regarding Stay Request

File *

File: 20231011 Letter to AAT and appt re stay request 23001627.pdf

Australian Government Solicitor
Level 5, 4 National Circuit Barton ACT 2600
Locked Bag 35 Kingston ACT 2604
T 02 6253 7000
www.ags.gov.au

Canberra
Sydney
Melbourne
Brisbane
Perth
Adelaide
Hobart
Darwin

Our ref. 23004627

11 October 2023

Administrative Appeals Tribunal
Perth Registry
Level 13, 111 St Georges Terrace PERTH WA 6000
By email only: *perth.registry@aat.gov.au*

Tom Monks
Principal Director
Tom & Co Legal Pty Ltd
PO Box 25567 PERTH WA 6000
By email only: *info@tomandcolegal.com.au*

Dear Registrar and Mr Monks

AAT Applications – Vida REID, Simon REID and FORWARD FOCUSSED GROUP PTY LTD and Commissioner of the NDIS Quality and Safeguards Commission (AAT no. 2023/3361, 2023/3363 and 2023/4494)

We refer to the above matter and write to formally request that the Tribunal stay these proceedings pending the outcome of the criminal proceedings against Vida Reid.

The Respondent has discussed this proposal with the applicants' representatives who have signalled their agreement to stay the application lodged by Vida Reid but not the applications lodged by Simon Reid or Forward Focussed Group Pty Ltd.

The Respondent therefore requests that the Tribunal exercise its discretion to stay proceedings in the interests of justice where there are concurrent criminal proceedings on foot, see the cases cited in *Wide Bay Conservation Council Inc v Burnett Water Pty Ltd [2010] ALMD 7901; [2008] FCA 1900 at [19]-[21*]. The Respondent also seeks to rely on *Re AWB Limited* [2008] VSC 473 where Robson J confirmed that an exercise of the discretion to stay a civil proceeding may be sought where there is a "reasonable possibility" that related criminal proceedings will be instituted (in circumstances where they have not been instituted to date).

Please contact us if you would like to discuss.

Yours sincerely

Karlie L Dickinson

Karlie Dickinson
Senior Lawyer
T 03 9242 1244
karlie.dickinson@ags.gov.au

Administrative Appeals Tribunal

Document Submission

Reference Number: **GT9935**

Submission Date and Time: **17 Oct 2023 2:42:57 PM AEDT (UTC+11:00)**

Send us your documents online

Your details

AAT case/review number

2023/3361

Applicant name

Reid

Your role

Respondent representative

Your name

Catherine Mayne

Your email address

catherine.mayne@ags.gov.au

Please note: When you send us a document using this system, it is only sent to the AAT. You must also send a copy of the document to any other party unless the AAT makes an order that you do not have to. Information about confidentiality orders is on our website.

Have you sent or will you be sending a copy of the document or documents to the other party? *

(•) Yes ( ) No

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If you have not already sent the document(s) to the other party, please do not copy the AAT when you send the document(s).

Comments (maximum 150 characters)

Correspondence re opposition to stay

Are you sending us Section 37 documents (T-documents) on behalf of the agency, organisation or person who made the decision we are reviewing? *

( ) Yes (•) No

Documents

For each document you want to send us, please select the most appropriate document type from the drop down list.

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- .gif, .jpg and .png (GIF, JPEG and PNG image files)
- .pdf (PDF files),
- .rtf (RTF files),
- .xls and .xlsx (Microsoft Excel files).

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The maximum size for any single file is 15MB. The maximum size for all documents is 100MB.

Document 1

Document type *

Other

Description (maximum 150 characters) *

Correspondence re opposition to stay

File *

File: 20231017 Letter to AAT and appt re opposition to stay - 23001627.pdf

Our ref. 23001627

17 October 2023

Administrative Appeals Tribunal
Perth Registry
Level 13, 111 St Georges Terrace PERTH WA 6000
By email only: *perth.registry@aat.gov.au*

Tom Monks
Principal Director
Tom & Co Legal Pty Ltd
PO Box 25567 PERTH WA 6000
By email only: *info@tomandcolegal.com.au*

Dear Registrar and Mr Monks

AAT Applications – Vida REID, Simon REID and FORWARD FOCUSSED GROUP PTY LTD and Commissioner of the NDIS Quality and Safeguards Commission (AAT no. 2023/3361, 2023/3363 and 2023/4494)

We refer to the above matter and the applicants' correspondence of yesterday.

The Respondent does not withdraw her section 35 application. It is quite simply her view that these applications should be stayed pending the outcome of the criminal proceedings.

If the Tribunal is not minded to direct that the applications be stayed, the Respondent seeks the confidentiality orders previously requested for the reasons set out in her submissions dated 12 September 2023. The Respondent also notes that the Applicants are due to lodge their submissions in response to this application today.

Please contact us if you would like to discuss.

Yours sincerely

Karlie L Dickinson

Karlie Dickinson
Senior Lawyer
T 03 9242 1244
karlie.dickinson@ags.gov.au

Administrative Appeals Tribunal

Document Submission

Reference Number: **Z8N6MP**

Submission Date and Time: **29 Nov 2023 12:07:24 PM AEDT (UTC+11:00)**

Send us your documents online

Your details

AAT case/review number

2023/3361

Applicant name

Reid

Your role

Respondent representative

Your name

Kayla Winship

Your email address

kayla.winship@ags.gov.au

Please note: When you send us a document using this system, it is only sent to the AAT. You must also send a copy of the document to any other party unless the AAT makes an order that you do not have to. Information about confidentiality orders is on our website.

Have you sent or will you be sending a copy of the document or documents to the other party? *

(•) Yes ( ) No

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If you have not already sent the document(s) to the other party, please do not copy the AAT when you send the document(s).

Comments (maximum 150 characters)

Are you sending us Section 37 documents (T-documents) on behalf of the agency, organisation or person who made the decision we are reviewing? *

( ) Yes (•) No

Documents

For each document you want to send us, please select the most appropriate document type from the drop down list.

Use the *Description* field to give us more information about the document or to send us a brief message about the document you are uploading.

You can upload more than one document by clicking the Add Document button.

The types of files you can send us are:

- .doc and .docx (Microsoft Word documents),

- .gif, .jpg and .png (GIF, JPEG and PNG image files)
- .pdf (PDF files),
- .rtf (RTF files),
- .xls and .xlsx (Microsoft Excel files).

We do not accept zipped or archive files.

The maximum size for any single file is 15MB. The maximum size for all documents is 100MB.

Document 1

Document type *

Submission

Description (maximum 150 characters)

The Respondent does not agree that the interlocutory application to be listed should be heard in-person. filed on 2023/3363 and 2023/4494 as well.

File *

File: 20231129 - Submissions in response - stay 23004627.pdf

Willem Ws47E(c)

From: Burgess, Ashley <Ashley.Burgess@ags.gov.au>
Sent: Tuesday, 16 January 2024 5:18 PM
To: Perth Registry
Subject: 2023/3361 - Vida Reid and Commissioner of the NDIS Quality and Safeguards Commission - interlocutory hearing 17/1/24 [SEC=OFFICIAL] [AGSDMS-DMS.FID4932078]

Importance: High

Follow Up Flag: Upload
Flag Status: Flagged

Categories: Bill

EXTERNAL EMAIL
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OFFICIAL

Dear Associate

We refer to the interlocutory hearing listed for 10am tomorrow.

I will be appearing for the Commission and three of our clients at the Commission will be attending the hearing as observers via the Microsoft Teams link. Their names are Adam, Stephen and Hannah and I have asked that they keep their cameras off and microphones muted for the duration of the hearing.

Kind regards

Ashley Burgess
Senior Lawyer
Australian Government Solicitor
T 08 926 81165
ashley.burgess@ags.gov.au

Find out more about AGS at http://www.ags.gov.au

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AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

16/01/2024 - Appearance details - R - Interloc 17/01/24

Received Document

Document Category	Administrative
Document Type	Appearance details
Index Description	R - Interloc 17/01/24
Date Lodged	16/01/2024
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

	Reference
View	2023_3361_cover email1_170124.pdf

Description / Comments

From: Burgess, Ashley <Ashley.Burgess@ags.gov.au>
Sent: Tuesday, 16 January 2024 5:18 PM
To: Perth Registry <Perth.Registry@aat.gov.au>
Subject: 2023/3361 - Vida Reid and Commissioner of the NDIS Quality and Safeguards Commission - interlocutory hearing 17/1/24 [AGSDMS-

Dear Associate
We refer to the interlocutory hearing listed for 10am tomorrow.
I will be appearing for the Commission and three of our clients at the Commission will be attending the hearing as observers via the Microsoft Teams link. Their names are Adam, Stephen and Hannah and I have asked that they keep their cameras off and microphones muted for the duration of the hearing.
Kind regards
Ashley Burgess

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

18/01/2024 - Correspondence - R - Reps OOF reply to Direction

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	R - Reps OOF reply to Direction
Date Lodged	18/01/2024
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

	Reference
View	2023_3361_cover email1_180124.pdf
View	2023_3361_cover email2_180124.pdf

Description / Comments

From: Burgess, Ashley <Ashley.Burgess@ags.gov.au>
Sent: Thursday, 18 January 2024 2:00 PM
Subject: Automatic reply: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction
Thank you for your email. I am currently on personal leave with limited access to my emails. If your email is urgent, please contact me legal assistant, Elisa Filipo on 07336 05697.
Ashley Burgess

From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Sent: Thursday, 18 January 2024 2:00 PM
Subject: Automatic reply: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction
Thank you for your email.
I am now on leave and will not return until Wednesday 7 February 2024.
My emails are being monitored sporadically in my absence, but for urgent assistance, please contact Kayla.Winship@ags.gov.au
With best wishes
Karlie

Willem Ws47E(c)

From: Burgess, Ashley <Ashley.Burgess@ags.gov.au>
Sent: Thursday, 18 January 2024 2:00 PM
To: Perth Registry
Subject: Automatic reply: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy] [SEC=OFFICIAL]

Categories: Bill

EXTERNAL EMAIL
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Thank you for your email. I am currently on personal leave with limited access to my emails. If your email is urgent, please contact me legal assistant, Elisa Filipo on 07336 05697.

Ashley Burgess
Senior Lawyer
Australian Government Solicitor
T 08 926 81165
ashley.burgess@ags.gov.au

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Willem Ws47E(c)

From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Sent: Thursday, 18 January 2024 2:00 PM
To: Perth Registry
Subject: Automatic reply: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy] [SEC=OFFICIAL]

Categories: Bill

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Thank you for your email.

I am now on leave and will not return until Wednesday 7 February 2024.

My emails are being monitored sporadically in my absence, but for urgent assistance, please contact Kayla.Winship@ags.gov.au

With best wishes

Karlie

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2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

07/03/2024 - Interloc app - other - R - Stay app withdrawn

Received Document

Document Category	Administrative
Document Type	Interloc app - other
Index Description	R - Stay app withdrawn
Date Lodged	07/03/2024
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

Description / Comments

From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Sent: Thursday, 7 March 2024 2:02 PM
To: Perth Registry <Perth.Registry@aat.gov.au>
Cc: Tom Monks <tom@tomandcolegal.com.au>
Subject: RE: 2023/3363 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission [SEC=OFFICIAL] [AGSDMS-DMS.FID4932078]

EXTERNAL EMAIL
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Dear Registry

We write further to previous correspondence in this matter.

We have been instructed that following Ms Vida Reid's mention hearing on 23 February, the criminal charges against her have been withdrawn by the CDPP. In light of this, the Commissioner withdraws her application for Mr Simon Reid's AAT application to be stayed.

We would be grateful if this email could please be drawn to the immediate attention of Deputy President Mischin. We have copied the applicants' representative to this email.

Yours sincerely

Karlie Dickinson

_____
Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 M 0497 538 784
karlie.dickinson@ags.gov.au
My working days are: Wednesday, Thursday and Friday
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From:	Sirguroh, Irfana on behalf of Dickinson, Karlie
To:	Tom & Co Legal; Perth Registry; Dickinson, Karlie
Cc:	Commissioner of the NDIS Quality and Safeguards Commission
Subject:	RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL, ACCESS=Personal-Privacy]
Date:	Tuesday, 9 April 2024 12:37:31 PM
Attachments:	image003.png image004.png

EXTERNAL EMAIL

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Dear Registrar

We confirm that we are available on 23 April 2024. Please be advised that we also available throughout April, if 23 April is not suitable.

Kind regards

Irfana Sirguroh
Legal Administrative Assistant
Australian Government Solicitor
T 03 924 21324
irfana.sirguroh@ags.gov.au

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From: Tom & Co Legal <info@tomandcolegal.com.au>
Sent: Monday, 8 April 2024 5:32 PM
To: Perth Registry <perth.registry@aat.gov.au>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Cc: Commissioner of the NDIS Quality and Safeguards Commission <legal@ndiscommission.gov.au>
Subject: Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

CAUTION: This email originated from outside of the organisation. Do not follow guidance, click links, or open attachments unless you recognise the sender and know the content is safe.

Dear Colleagues,
We refer to the above matter.
Counsel is available on 23 April 2024.
Kind regards
Aashini Patel

phone +61 (08) 6255 5737
email info@tomandcolegal.com.au
office 92 Edward Street, PERTH WA 6000

From: Perth Registry <perth.registry@aat.gov.au>
Date: Monday, 8 April 2024 at 10:55 am
To: Karlie Dickinson <karlie.dickinson@ags.gov.au>, Tom & Co Legal <info@tomandcolegal.com.au>
Cc: Commissioner of the NDIS Quality and Safeguards Commission <legal@ndiscommission.gov.au>
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

Dear Parties,

i refer to the above matter.

The Tribunal is planning to schedule a 1 hour telephone directions hearing. Please advise the Tribunal of your availability for the month of April by COB 9 April 2024.

Yours sincerely,

Christie O
Senior Associate

Administrative Appeals Tribunal
GD Registry
T: 08 6222 7200 F: 08 6222 7299
E: perth.registry@aat.gov.au

www.aat.gov.au

Please refer to the AAT website for information about temporary changes in place to respond to the impact of COVID-19 on services, including special measures practice directions: http://www.aat.gov.au/impact-of-coronavirus-covid-19-on-our-services.

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AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

11/04/2024 - Correspondence - R - Avail dates in May 2024

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	R - Avail dates in May 2024
Date Lodged	11/04/2024
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

Description / Comments

From: Sirguroh, Irfana <Irfana.Sirguroh@ags.gov.au> On Behalf Of Dickinson, Karlie
Sent: Tuesday, 9 April 2024 1:37 PM
To: Perth Registry <Perth.Registry@aat.gov.au>; Tom Monks <info@tomandcolegal.com.au>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Cc: Commissioner of the NDIS Quality and Safeguards Commission <legal@ndiscommission.gov.au>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL, ACCESS=Personal-Privacy] [AGSDMS-DMS.FID4932078]

EXTERNAL EMAIL
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OFFICIAL
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Dear Registrar

We confirm that AGS is available to appear during the first 2 weeks of May 2024.

Kind regards

Irfana Sirguroh
Legal Administrative Assistant
Australian Government Solicitor
T 03 924 21324
irfana.sirguroh@ags.gov.au
Find out more about AGS at http://www.ags.gov.au

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AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

05/06/2024 - Direction/order - request for EOT to comply - R

Received Document

Document Category	Administrative
Document Type	Direction/order - request for EOT to comply
Index Description	R
Date Lodged	05/06/2024
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	
Description / Comments	**Directions attached to the email were dated 15 May 2024**

From: Young, Oliver <Oliver.Young@ags.gov.au>
Sent: Wednesday, 5 June 2024 3:40 PM
To: Perth Registry <Perth.Registry@aat.gov.au>
Cc: Tom Monks <tom@tomandcolegal.com.au>; info@tomandcolegal.com.au; Williams, Alice <Alice.Williams@ags.gov.au>
Subject: 2023/3361- RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Request to amend direction [AGSDMS-DMS.FID4932078]

EXTERNAL EMAIL
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Dear Registrar

In order to have sufficient time to collate and finalise the updated tender bundle, the respondent respectfully requests that the Tribunal amend the attached directions as follows:

1. By no later than 512 June 2024 the Respondent file with the Tribunal and serve on each of the Applicants an updated tender bundle.

2. On or before 26 June3 July 2024 the Applicants file with the Tribunal and serve on the Respondent a Statement of Facts, Issues and Contentions and any further evidence on which the Applicants propose to rely at the hearing.

3. On or before 1724 July 2024 the Respondent file with the Tribunal and serve on the Applicants a Statement of Facts, Issues and Contentions and any further evidence on which the Respondent proposes to rely at the hearing.

We contacted the applicant's solicitor (who is copied to this email) in relation to our request but have not received a response.

Regards
Oliver

Oliver Young
Senior Executive Lawyer (A/g)
Australian Government Solicitor
T 03 9242 1195 M 0405 288 696
oliver.young@ags.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

21/06/2024 - Interloc app - S 35 (confidentiality) - R request for confidentiality over Tactiical Intelligence

Received Document

Document Category	Administrative
Document Type	Interloc app - S 35 (confidentiality)
Index Description	R request for confidentiality over Tactiical Intelligence
Date Lodged	21/06/2024
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

	Reference
View	20240621 Ltr to AAT and App 23004627.pdf
View	20240621 Section 35 application 23004627.pdf

Description / Comments

From: Williams, Alice <Alice.Williams@ags.gov.au>
Sent: Friday, 21 June 2024 1:16 PM
To: Perth Registry <Perth.Registry@aat.gov.au>
Cc: info@tomandcolegal.com.au; Young, Oliver <Oliver.Young@ags.gov.au>
Subject: AAT Applications - AAT no. 2023/3361, AAT no. 2023/3363 & AAT no. 2023/4494 [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

EXTERNAL EMAIL
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OFFICIAL

OFFICIAL
Dear Registrar

Please see attached request for confidentiality orders with covering letter for your attention.

The applicant's representative is copied into this email.

Should you have any queries, please do not hesitate to contact myself or Oliver Young.

Kind regards
Alice

_____
Alice Williams
Legal Assistant
Australian Government Solicitor
T 03 924 21499
alice.williams@ags.gov.au
Find out more about AGS at http://www.ags.gov.au

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Our ref. 23004627

21 June 2024

Administrative Appeals Tribunal
Perth Registry
Level 13, 111 St Georges Terrace
PERTH WA 6000
By email only: perth.registry@aat.gov.au

Tom Monks
Principal Director
Tom & Co Legal Pty Ltd
PO Box 25567
PERTH WA 6000
By email only: info@tomandcolegal.com.au

Dear Registrar and Mr Monks

AAT Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (AAT no. 2023/3361); Simon REID and Commissioner of the NDIS Quality and Safeguards Commission (AAT no. 2023/3363); Forward Focussed Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission (AAT no. 2023/4494)

Section 35 application and proposed order

Please find **enclosed** a proposed order that the respondent seeks from the Tribunal in relation to a separately provided document.

The respondent has provided the Tribunal a document in a form that, it is submitted, is appropriate for the Tribunal to view but not the applicant or the public at this stage.

Because the disclosure of the document could identify internal investigative processes which could prejudice future investigations, the document is not subject to disclosure requirements under s 37(1)(b) of the AAT Act, and should not be disclosed to the applicant or the public at large.

Please contact us if you would like to discuss.

Yours sincerely

Oliver Young
Senior Executive Lawyer
(A/g)
T 03 9242 1195
oliver.young@ags.gov.au

ADMINISTRATIVE APPEALS TRIBUNAL
NATIONAL DISABILITY INSURANCE SCHEME DIVISION
PERTH REGISTRY **2023/3361; 2023/3363; 2023/4494**

VIDA REID
SIMON REID
FORWARD FOCUSSED GROUP
Applicants

COMMISSIONER OF THE NDIS QUALITY AND

SAFEGUARDS COMMISSION
Respondent

REQUEST FOR CONFIDENTIALITY ORDERS UNDER SECTION 35 OF THE *ADMINISTRATIVE APPEALS TRIBUNAL ACT* 1975

Orders sought:

Under s 35(4) of the *Administrative Appeals Tribunal Act 1975* (Cth) (AAT Act), the Administrative Appeals Tribunal directs in the above proceedings:

1. because the disclosure of the document would identify internal investigative processes which could prejudice future investigations, the document is not subject to disclosure requirements under s 37(1)(b) of the AAT Act, and that the disclosure of this document to the applicant or the public at large is prohibited

Date: 21 June 2024

Oliver Young
A/g Senior Executive lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent

Lodged on behalf of the Respondent

The Australian Government Solicitor
4 National Circuit
Barton ACT 2600
DX 5678 Canberra

Contact: Karlie Dickinson

File ref: 23004627
Telephone: 03 9244 1244
E-mail: Karlie.dickinson@ags.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

18/07/2024 - Correspondence - R confirming name of docs over which s35 ought

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	R confirming name of docs over which s35 ought
Date Lodged	18/07/2024
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

Description / Comments

From: Young, Oliver <Oliver.Young@ags.gov.au>
Sent: Thursday, 18 July 2024 7:53 AM
To: Perth Registry <Perth.Registry@aat.gov.au>
Cc: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: FW: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL, ACCESS=Personal-Privacy] [AGSDMS-DMS.FID4932078]

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Dear Associate

Thank you for your email. That was an oversight on our part.

The document is the NDIA' Tactical Intelligence Report' dated 18 August 2022 the title of which can be disclosed to the applicant.

Regards
Oliver

Oliver Young
Senior Executive Lawyer (A/g)
Australian Government Solicitor
T 03 9242 1195 M 0405 288 696
oliver.young@ags.gov.au

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AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

31/07/2024 - Correspondence - R requests EOT for SFIC & notifying of A's non compliance

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	R requests EOT for SFIC & notifying of A's non compliance
Date Lodged	31/07/2024
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

Description / Comments

From: Young, Oliver <Oliver.Young@ags.gov.au>
Date: Tuesday, 6 August 2024 at 10:38?AM
To: Perth Registry <perth.registry@aat.gov.au>
Cc: Tom Monks <tom@tomandcolegal.com.au>, Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: Request for Directions hearing - 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission [AGSDMS-DMS.FID4932078]

Dear Registrar

Further to our email below, the Respondent requests an urgent Directions hearing to discuss the three related applications in these proceedings.

We consider that the applicants failure to comply with the directions of the Tribunal, and failure to provide a meaningful explanation on their delay in progressing their applications, should be ventilated before the Tribunal as a matter of urgency.

Regards
Oliver

Oliver Young
Senior Executive Lawyer (A/g)
Australian Government Solicitor
T 03 9242 1195 M 0405 288 696
oliver.young@ags.gov.au

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From: Young, Oliver <Oliver.Young@ags.gov.au>
Sent: Wednesday, 31 July 2024 10:05 AM
To: Perth Registry <Perth.Registry@aat.gov.au>
Cc: Tom Monks <tom@tomandcolegal.com.au>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy] [AGSDMS-DMS.FID4932078]

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Dear Registrar

Given the late filing of the applicant's SFIC in Simon Reid's application (no further evidence was filed), the respondent requests that the direction for the filing of the respondent's SFIC in Simon's application be amended as follows:

2. In direction 3 by changing the date that the Respondent file with the Tribunal and serve on the Applicants a Statement of Facts, Issues and Contentions and any further evidence on which the Respondent proposes to rely at the hearing from 'On or before 17 July 2024' to 'On or before 31 July 6 August 2024'.

The applicant's solicitor has indicated that the applicant, Simon Reid, would not oppose this request.

The respondent otherwise notes that no SFIC or further evidence has been filed in Vida or FFG's applications (noting they were due to be filed by 10 July 2024). We have been following up the applicant's solicitor and have been told yesterday that they "intend to update the Tribunal shortly."

In those circumstances, the respondent has not yet prepared for filing a SFIC or further evidence with respect to Vida Reid's and FFG's applications.

Given the applicants' non-compliance with the Tribunal directions, the respondent is also amenable to a further Directions hearing for the parties to be heard on compliance with the current directions and progression of the 3 applications.

Regards
Oliver

Oliver Young
Senior Executive Lawyer (A/g)
Australian Government Solicitor
T 03 9242 1195 M 0405 288 696
oliver.young@ags.gov.au

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AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

27/09/2024 - Appearance details - R for CMTDH

Received Document

Document Category	Administrative
Document Type	Appearance details
Index Description	R for CMTDH
Date Lodged	27/09/2024
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

Description / Comments

From: Sydney Registry <Sydney.Registry@aat.gov.au>
Sent: Friday, September 27, 2024 11:06 AM
To: Perth Registry <Perth.Registry@aat.gov.au>
Cc: Daniel K[s47E(c)] <[s47E(d)]@aat.gov.au>
Subject: FW: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice [SEC=OFFICIAL, ACCESS=Personal-Privacy]

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From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Sent: Friday, September 27, 2024 1:04 PM
To: Sydney Registry <Sydney.Registry@aat.gov.au>; Tom Monks <info@tomandcolegal.com.au>
Subject: Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy] [SEC=OFFICIAL]

EXTERNAL EMAIL
"Do not click any links or open any attachments unless you trust the sender, are expecting this email and know the content is safe."
Dear Registry

Thank you for the listing notice in this application.

Please note that Julie Moore, barrister will appear on behalf of the Commission. She can be contacted on [s47F]

We would be grateful if you would also please contact me on 0497 538 784 for the hearing.

Yours sincerely

Karlie Dickinson

_____
Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 M 0497 538 784
karlie.dickinson@ags.gov.au
My working days are: Wednesday, Thursday and Friday

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

02/10/2024 - Appearance details - for CMTDH on 3/10/2024

Received Document

Document Category	Administrative
Document Type	Appearance details
Index Description	for CMTDH on 3/10/2024
Date Lodged	02/10/2024
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

Description / Comments

From: Sirguroh, Irfana <Irfana.Sirguroh@ags.gov.au>
Sent: Wednesday, October 2, 2024 10:38 AM
To: Sydney Registry <Sydney.Registry@aat.gov.au>; Tom Monks <info@tomandcolegal.com.au>
Cc: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice [SEC=OFFICIAL, ACCESS=Personal-Privacy] [AGSDMS-DMS.FID4932078]

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Dear Registrar

Further to the below email, please be advised that Danae Younger will also be observing for the Respondent.

Danae can be contacted on 0421 006 774.

Kind regards

_____
Irfana Sirguroh
Legal Assistant
Australian Government Solicitor
T 03 9242 1324
irfana.sirguroh@ags.gov.au
Find out more about AGS at http://www.ags.gov.au

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From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Sent: Friday, 27 September 2024 1:04 PM
To: Sydney Registry <sydney.registry@aat.gov.au>; Tom Monks

<info@tomandcolegal.com.au>
Subject: Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy] [SEC=OFFICIAL]

Dear Registry

Thank you for the listing notice in this application.

Please note that Julie Moore, barrister will appear on behalf of the Commission. She can be contacted on s47F

We would be grateful if you would also please contact me on 0497 538 784 for the hearing.

Yours sincerely

Karlie Dickinson

_____
Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 M 0497 538 784
karlie.dickinson@ags.gov.au
My working days are: Wednesday, Thursday and Friday
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From: "Sydney Registry" <sydney.registry@aat.gov.au>
Date: Thursday 26 September 2024 at 5:53:51?PM
To: "Tom Monks" <info@tomandcolegal.com.au>, "Dickinson, Karlie" <Karlie.Dickinson@ags.gov.au>
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

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Dear parties,

Please find attached a Listing Notice for a listing in this matter.

May each party please confirm their appearance and provide the best contact number for the listing. Should either party not be available to attend the anticipated event, it is requested the parties confer and provide the Tribunal with mutual availability to reschedule this listing.

Yours sincerely,

Daniel K
Associate

Administrative Appeals Tribunal
GD Registry
T: 02 9276 5337 F: 02 9276 5599
E: sydney.registry@aat.gov.au

www.aat.gov.au

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From 14 October 2024, the Administrative Appeals Tribunal (AAT) will be replaced by a new body, called the Administrative Review Tribunal. All AAT reviews not finalised by this date will automatically transfer to the new Tribunal. If you are an applicant or another party to a review, you do not need to do anything. For more information visit www.aat.gov.au.

The Tribunal acknowledges the traditional owners and custodians of country throughout Australia and acknowledges their continuing connection to land, waters and community. We pay our respects to the people, the cultures and elders past and present.

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AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

25/10/2024 - Correspondence - R - General correspondence

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	R - General correspondence
Date Lodged	25/10/2024
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

	Reference
View	FW_ 2023_3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence.pdf

Description / Comments

From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Sent: Friday, October 25, 2024 12:21 PM
To: Brisbane Registry <Brisbane.Registry@art.gov.au>; charles@weeksco.com.au
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL, ACCESS=Personal-Privacy] [AGSDMS-DMS.FID4932078]
EXTERNAL EMAIL
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Dear Mr Dallimore
We would be grateful if you would please get in touch (email or phone is fine) to discuss your request so that we might be able to consider proposed directions and/or notify the Tribunal of our availability for a directions hearing.
We also note that we haven't received any correspondence indicating that you are now acting for these applicants nor that Tom Monks is no longer on the record and would be grateful if you could please provide something in writing?
Yours sincerely

Karlie Dickinson

_____
Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 M 0497 538 784
karlie.dickinson@ags.gov.au
My working days are: Wednesday, Thursday and Friday
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From: Brisbane Registry <brisbane.registry@art.gov.au>

Sent: Thursday, 24 October 2024 11:39 AM
To: charles@weeksco.com.au
Cc: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]
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Dear Mr Dallimore,

Thank you for your time on the phone. The contact details of the respondent's representative are below:

Karlie Dickinson of AGS
Ph: 03 9242 1244
E: Karlie.Dickinson@ags.gov.au

I attach the current tribunal directions for the management of the case.

Would the parties please advise their availability for a directions hearing in the week starting 4 November 2024, to deal with Mr Dallimore's request for an extension to file and serve material, and his request that all the parties' material be re-served upon the applicant. The Tribunal is also open to considering any proposed directions made with the consent of the parties, to avoid the need for a directions hearing.

Yours sincerely

Madeleine S
Associate

Administrative Review Tribunal
Brisbane Registry
T: 1800 228 333
E: brisbane.registry@a rt.gov.au

www.art.gov.au

The Administrative Review Tribunal replaced the Administrative Appeals Tribunal (AAT) and Immigration Assessment Authority (IAA) on 14 October 2024. All reviews not finalised prior to this date have been automatically transferred to the new Tribunal. If you are an applicant or another party to a review, you do not need to do anything. For more information visit www.art.gov.au.
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From:	Brisbane Registry
To:	Brisbane Registry (GD)
Subject:	FW: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL, ACCESS=Personal-Privacy]
Date:	Friday, 25 October 2024 12:24:32 PM

File No: 2023/3361
Case Name: RE Reid and Commissioner of the NDIS Quality and Safeguards Commission
File Loc: S[redacted], Madeleine
Case Officer: Brisbane, MST TL
Next Listing: Interlocutory Hearing by video - Stay application
List Date: 25-11-2024
Local Receive Time: Friday, October 25, 2024 11:22 AM

From: Reviews <reviews@art.gov.au>
Sent: Friday, October 25, 2024 1:22:45 AM
To: Brisbane Registry <Brisbane.Registry@art.gov.au>
Subject: FW: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL, ACCESS=Personal-Privacy]

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From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Sent: Friday, October 25, 2024 12:21 PM
To: Brisbane Registry <Brisbane.Registry@art.gov.au>; charles@weeksco.com.au
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL, ACCESS=Personal-Privacy] [AGSDMS-DMS.FID4932078]

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We also note that we haven't received any correspondence indicating that you are now acting for these applicants nor that Tom Monks is no longer on the record and would be grateful if you could please provide something in writing?
Yours sincerely

Karlie Dickinson

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **M** 0497 538 784
karlie.dickinson@ags.gov.au

My working days are: Wednesday, Thursday and Friday

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From: Brisbane Registry <brisbane.registry@art.gov.au>
Sent: Thursday, 24 October 2024 11:39 AM
To: charles@weeksco.com.au
Cc: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

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Karlie Dickinson of AGS
Ph: 03 9242 1244
E: Karlie.Dickinson@ags.gov.au

I attach the current tribunal directions for the management of the case.

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Yours sincerely

Madeleine S
Associate

Administrative Review Tribunal
Brisbane Registry
T: 1800 228 333
E: brisbane.registry@a rt.gov.au

www.art.gov.au

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AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

04/11/2024 - Appearance details - R for TDH 6.11.2024

Received Document

Document Category	Administrative
Document Type	Appearance details
Index Description	R for TDH 6.11.2024
Date Lodged	04/11/2024
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

Description / Comments

From: Sirguroh, Irfana <Irfana.Sirguroh@ags.gov.au>
Sent: Monday, November 4, 2024 5:38:08 AM
To: Brisbane Registry <Brisbane.Registry@art.gov.au>
Cc: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; charles@weeksco.com.au <charles@weeksco.com.au>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice [SEC=OFFICIAL, ACCESS=Personal-Privacy] [AGSDMS-DMS.FID4932078]

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Dear Registrar

We refer to the above matter and to Telephone Directions Hearing listed for Wednesday, 6 November 2024 at 10AM.

We advise that Karlie Dickinson (AGS) will be appearing on behalf of the Respondent.

Karlie can be contacted on 03 9242 1244.

Kind regards

Irfana Sirguroh
Legal Assistant
Australian Government Solicitor
T 03 9242 1324
irfana.sirguroh@ags.gov.au
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AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

05/11/2024 - Adjournment/vacation of listing - response - R

Received Document

Document Category	Administrative
Document Type	Adjournment/vacation of listing - response
Index Description	R
Date Lodged	05/11/2024
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

Description / Comments

From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Sent: Tuesday, November 5, 2024 8:57:03 AM
To: Brisbane Registry <Brisbane.Registry@art.gov.au>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Hearing/Conference vacated [SEC=OFFICIAL, ACCESS=Personal-Privacy] [AGSDMS-DMS.FID4932078]

EXTERNAL EMAIL
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Many thanks for this email of which I acknowledge receipt.

Best wishes

Karlie

_____
Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 M 0497 538 784
karlie.dickinson@ags.gov.au
My working days are: Wednesday, Thursday and Friday
Find out more about AGS at http://www.ags.gov.au

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OFFICIAL
Personal Privacy
From: Brisbane Registry <brisbane.registry@art.gov.au>
Sent: Tuesday, 5 November 2024 5:46 PM
To: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; charles@weeksco.com.au; Tom Monks <info@tomandcolegal.com.au>
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Hearing/Conference vacated [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

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Dear Parties,

Due to an administrative error of the Tribunal, the directions hearing listed for tomorrow, 6 November 2024, cannot go ahead, and has therefore been vacated. We apologise for the inconvenience this may cause.

An email with an updated listing notice will follow shortly.

Yours sincerely

Madeleine S
Associate

Administrative Review Tribunal
Brisbane Registry
T: 1800 228 333
E: brisbane.registry@art.gov.au

www.art.gov.au

The Administrative Review Tribunal replaced the Administrative Appeals Tribunal (AAT) and Immigration Assessment Authority (IAA) on 14 October 2024. All reviews not finalised prior to this date have been automatically transferred to the new Tribunal. If you are an applicant or another party to a review, you do not need to do anything. For more information visit www.art.gov.au.

The Tribunal acknowledges the traditional owners and custodians of country throughout Australia and acknowledges their continuing connection to land, waters and community. We pay our respects to the people, the cultures and elders past and present.

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AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

08/11/2024 - Appearance details - R for TDH 14/11/2024

Received Document

Document Category	Administrative
Document Type	Appearance details
Index Description	R for TDH 14/11/2024
Date Lodged	08/11/2024
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

Description / Comments

From: Sirguroh, Irfana <Irfana.Sirguroh@ags.gov.au>
Sent: Friday, November 8, 2024 1:06:28 AM
To: Brisbane Registry <Brisbane.Registry@art.gov.au>
Cc: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; charles@weeksco.com.au <charles@weeksco.com.au>; Tom Monks <info@tomandcolegal.com.au>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice [SEC=OFFICIAL, ACCESS=Personal-Privacy] [AGSDMS-DMS.FID4932078]

EXTERNAL EMAIL
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Dear Registrar

We refer to the above matter and to the Telephone Directions Hearing listed for Thursday, 14 November 2024 at 10am.

We advise that Karlie Dickinson (AGS) will be appearing on behalf of the Respondent. Please also note that Adam Grullemans and Kirsten Jones (NDISQSC Instructors) will be observing.

Karlie can be contacted on 03 9242 1244, Adam can be contacted on 0419 713 324, and Kirsten can be contacted on 0481 125 167.

Kind regards

Irfana Sirguroh
Legal Assistant
Australian Government Solicitor
T 03 9242 1324
irfana.sirguroh@ags.gov.au
Find out more about AGS at http://www.ags.gov.au

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AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

02/02/2025 - Correspondence - R - Response to Stay Request from A

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	R - Response to Stay Request from A
Date Lodged	02/02/2025
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

Description / Comments

From: Dickinson, Karlie
Sent: Sunday, February 2, 2025 10:56:56 PM
To: vida_reid@yahoo.com
Cc: Brisbane Registry ; Tom Monks ; Tom & Co Legal
Subject: FW: The proceedings for Ms Vida Reid (2023/3361) and Forward Focused Group Pty Ltd (2023/4494) be stayed [SEC=OFFICIAL] [AGSDMS-DMS.FID4932078]
EXTERNAL EMAIL
"Do not click any links or open any attachments unless you trust the sender, are expecting this email and know the content is safe."
OFFICIAL
Dear Mrs Reid
Thank you for forwarding your application requesting and the reasons why you seek, a stay of your application and that of FFG.
I have copied Mr Tom Monks, who represents your husband Simon and also the Brisbane Registry to this email (as the email that you had for them had a small error which may have delayed receipt of your email).
Given your application contains information that is also relevant to your husband, we would be grateful if Tom and Co Legal could urgently confirm whether Mr Simon Reid is also seeking a stay of this application. We would particularly appreciate if we could be informed of Mr Reid's position by the end of this week (i.e. Friday 7 February), given an interlocutory hearing has been listed for Thursday 13 February 2025.
Please be aware that I have taken provisional instructions from the Commission and it may be possible to agree to your request without the need for a hearing, however we are unable to confirm our position until we have an indication as to Mr Simon Reid's approach to his application.
Yours sincerely
Karlie Dickinson

_____
Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 M 0497 538 784
karlie.dickinson@ags.gov.au
My working days are: Monday, Tuesday and Wednesday
Find out more about AGS at http://www.ags.gov.au

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OFFICIAL
From: vida Reid
Sent: Tuesday, 28 January 2025 3:38 AM
To: Dickinson, Karlie ; sydney.registry@aat.gov.au; Perth Registry ; brisbane.registry@att.gov.au; Dickinson, Karlie
Subject: The proceedings for Ms Vida Reid (2023/3361) and Forward Focused Group Pty Ltd (2023/4494) be stayed
Dear ART Registry,
I refer to the ongoing proceedings involving myself, Vida Reid (2023/3361), and Forward Focused Group Pty Ltd (2023/4494). I am now self-representing, and I would like to sincerely apologize for any delay in providing this update to the Tribunal. I was previously advised by my legal representatives that they would be providing updates to the ART and have assumed that all necessary notifications have been made up to this stage.
I wish to request that the Tribunal grant a stay of proceedings in my matter, as well as the associated matter for Forward Focused Group Pty Ltd, based on the principles and reasoning already presented, argued and accepted earlier on in these ongoing hearings.
As demonstrated in the submissions from the Respondent (dated 29 November 2023- I have attached it in this email for your convenience), the argument for a stay was successfully made on the basis that:
1. Concurrent investigations and proceedings exist, which could be compromised by the continuation of the AAT process.
2. Witnesses involved in criminal proceedings or ongoing investigations may be reluctant or fearful to participate, potentially jeopardizing fair outcomes in either forum.
3. Evidence and facts remain unresolved and are the subject of dispute in concurrent proceedings.
The same principles apply directly to these matters. The ongoing and unresolved investigations, as referenced in the Respondent's submissions, are still active and substantive, which makes it unreasonable to progress the AAT applications at this time.
Given this, I propose the following directions:
1. That the proceedings for Vida Reid (2023/3361) and Forward Focused Group Pty Ltd (2023/4494) be stayed until further order of the Tribunal to ensure no prejudice arises due to concurrent investigations and unresolved evidence disputes.
2. If the Respondent, NDIS and the Commissioner of the NDIS Quality and Safeguards Commission can confirm that no further investigations are ongoing, I would be open to continuing with my application.
In requesting this stay, I note the Respondent's own prior argument made in support of their application for a stay, as highlighted in their submissions:
" "Criminal proceedings will be potentially jeopardized if witnesses to those proceedings also give evidence in these AAT proceedings" (Respondent's Submissions, 29 November 2023, Paragraph 10).
" "[The Tribunal] must exercise care in ensuring no prejudice arises to the concurrent investigations or future proceedings" (Respondent's Submissions, Paragraph 12).
Applying the same rationale and precedent already accepted in this matter, it is evident that staying these proceedings aligns with principles of procedural fairness and efficiency.
I have copied the Respondent's legal representative, (AGS), into this email for their awareness and to ensure full transparency.
Please do not hesitate to contact me if further information is required. I look forward to your confirmation regarding this request.
Kind regards,
Vida Reid

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AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

12/03/2025 - Correspondence - R Rep - Letter to ART and Mrs Reid

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	R Rep - Letter to ART and Mrs Reid
Date Lodged	12/03/2025
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

Description / Comments

From: Dickinson, Karlie
Sent: Tuesday, March 11, 2025 7:06:39 AM
To: Brisbane Registry
Cc: vida Reid
Subject: ART Applications - Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (NDIS Commission) (ART no. 2023/3361); Simon REID and NDIS Commission (ART no. 2023/3363); Forward Focussed Group Pty Ltd and NDIS Comm... [AGSDMS-DMS.FID4932078]
EXTERNAL EMAIL
"Do not click any links or open any attachments unless you trust the sender, are expecting this email and know the content is safe."
Dear Registrar and Mrs Reid
ART Applications - Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (NDIS Commission) (ART no. 2023/3361); Simon REID and NDIS Commission (ART no. 2023/3363); Forward Focussed Group Pty Ltd and NDIS Commission (ART no. 2023/4494)
Please find attached letter sent on behalf of the Respondent in relation to the aforementioned three applications.
Yours sincerely
Karlie Dickinson

_____

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 M 0497 538 784
karlie.dickinson@ags.gov.au
My working days are: Monday, Tuesday and Wednesday
Find out more about AGS at http://www.ags.gov.au

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AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

19/05/2025 - Appearance details - R

Received Document

Document Category	Administrative
Document Type	Appearance details
Index Description	R
Date Lodged	19/05/2025
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	
Description / Comments	EXTERNAL EMAIL "Do not click any links or open any attachments unless you trust the sender, are expecting this email and know the content is safe." OFFICIAL Personal Privacy Dear Registry Thank you for your email. We would be grateful if you would please contact the following individuals who will be appearing and attending on behalf of the Respondent: Counsel: Ms Julie Moore - 08 9220 0471. AGS representative: Ms Karlie Dickinson - 0497 538 784 NDIS Q&S Commission Instructor: Ms Andrea Western - 0438 228 453. Yours sincerely Karlie Dickinson _____ Karlie Dickinson Senior Lawyer Australian Government Solicitor T 03 9242 1244 M 0497 538 784 karlie.dickinson@ags.gov.au My working days are: Monday, Tuesday and Wednesday Find out more about AGS at http://www.ags.gov.au Important: This message may contain confidential or legally privileged information. If you think it was sent to you by mistake, please delete all copies and advise the sender. For the purposes of the Spam Act 2003, this email is authorised by AGS.

From: Brisbane Member Support Team Mailbox
To: MST.BrisbaneGD
Subject: FW: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Additional Party to be dialled in [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Personal-Privacy]
Date: Tuesday, 10 June 2025 8:37:48 AM
Attachments: image001.png

Hi MST,

Please see attached, thanks!

Joey

Joseph K[redacted]
Senior Tribunal Officer (acting)
Administrative Review Tribunal

E[redacted]@art.gov.au
P[redacted]
www.art.gov.au

Administrative Review Tribunal

From: James W[redacted] <[redacted]@art.gov.au>
Sent: Tuesday, 10 June 2025 8:13 AM
To: Brisbane Member Support Team Mailbox <[redacted]@art.gov.au>
Subject: Fw: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Additional Party to be dialled in [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Personal-Privacy]

From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Sent: Friday, June 6, 2025 12:43 PM
To: Sydney Registry <Sydney.Registry@art.gov.au>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Additional Party to be dialled in [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Personal-Privacy]

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Dear Registry

With apologies for the late notice – we would be grateful if Keren Haywood (NDIS Q&S Commission Investigator) could please be added to the call for today's hearing – her number is s47F [redacted]

Yours sincerely

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **M** 0497 538 784
karlie.dickinson@ags.gov.au

My working days are: Monday, Tuesday and Wednesday

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From: Dickinson, Karlie
Sent: Monday, 19 May 2025 5:12 PM
To: 'Brisbane Registry' <brisbane.registry@art.gov.au>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice [SEC=OFFICIAL, ACCESS=Personal-Privacy] [AGSDMS-DMS.FID4932078]

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Dear Registry

Thank you for your email.

We would be grateful if you would please contact the following individuals who will be appearing and attending on behalf of the Respondent:

Counsel: Ms Julie Moore – 08 9220 0471.

AGS representative: Ms Karlie Dickinson – 0497 538 784

NDIS Q&S Commission Instructor: Ms Andrea Western – 0438 228 453.

Yours sincerely

Karlie Dickinson

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **M** 0497 538 784
karlie.dickinson@ags.gov.au

My working days are: Monday, Tuesday and Wednesday

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From: Brisbane Registry <brisbane.registry@art.gov.au>
Sent: Monday, 19 May 2025 4:17 PM
To: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; vida_reid@yahoo.com
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

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Dear Parties,

APPLICANT: Viva Reid
RESPONDENT: Commissioner of the NDIS Quality and Safeguards Commission

This application has been listed as shown below:

Directions Hearing by telephone

Date: Friday 6 June 2025
Time: 1:00PM (AEST)

Please note the Tribunal will contact you by telephone on the above date and time. Please rply to this email via at your earliest convenience with your appearance/s for the above, including the contact details and relationship/position of any additional parties that need to be dialled in as representatives, support persons or observers

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.
If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 99 of the Administrative Review Tribunal Act 2024.

Yours sincerely,

Kathy L
Tribunal Services Officer

Administrative Review Tribunal
GD Registry
T: 1800 228 333
E: brisbane.registry@art.gov.au

www.art.gov.au

The Administrative Review Tribunal replaced the Administrative Appeals Tribunal (AAT) and Immigration Assessment Authority (IAA) on 14 October 2024. All reviews not finalised prior to this date have been automatically transferred to the new Tribunal. If you are an applicant or another party to a review, you do not need to do anything. For more information visit www.art.gov.au.

The Tribunal acknowledges the traditional owners and custodians of country throughout

Australia and acknowledges their continuing connection to land, waters and community. We pay our respects to the people, the cultures and elders past and present.

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Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL **NATIONAL DISABILITY INSURANCE SCHEME DIVISION**	**)** **)** **)**	No: 2023/3361

Re: Vida Reid
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

ADMINISTRATIVE APPEALS TRIBUNAL **NATIONAL DISABILITY INSURANCE SCHEME DIVISION**	**)** **)** **)**	No: 2023/3363

Re: Simon Reid
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

ADMINISTRATIVE APPEALS TRIBUNAL **NATIONAL DISABILITY INSURANCE SCHEME DIVISION**	**)** **)** **)**	No: 2023/4494

Re: Forward Focused Group Pty Ltd
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

DIRECTIONS

TRIBUNAL: Deputy President K McMillan KC

DATE: 6 June 2025

PLACE: Brisbane

1. By 27 June 2025, Vida Reid, file and serve any application, supporting affidavit and a written outline of submissions in relation to any application;

   (a) for a stay of application number 2023/3361; or
   (b) for application number 2023/3361 of Vida Reid to be disassociated from application numbers 2023/3363 of Simon Reid and/or application number 2023/4494 of Forward Focused Group Pty Ltd.

2. Service in accordance with Order 1 may be affected by Vida Reid by email to:
   (a) the Respondent at karlie.dickinson@ags.gov.au;
   (b) Simon Reid at reid.simon4@gmail.com; and
   (c) Forward Focus Group Pty Ltd at reid.simon4@gmail.com;

3. By 18 July 2025, Simon Reid file and serve any affidavit or written outline of submission in response to any application filed in compliance with Order 1.

4. By 1 August 2025, the Respondent file and serve any affidavit and written outline of submissions in response to any application filed in compliance with Order 1.

5. The matter be set down at 10:00am (AWST) on 18 August 2025 for an interlocutory hearing for 1 day, to be held by video- link (Microsoft Teams).

.....
Deputy President

Administrative Review Tribunal

Submission date [YYYY/MM/DD] Sydney time

2025-09-17 14:50:04

User Id

65ed8e1a-b7c0-42c1-bf0e-d

Online reference number

BV5D7P

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Administrative
Review Tribunal

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Details

Complete the details below to upload documents to an existing application for review.

Tribunal case/review number *

2023/3361

Applicant's family name or organisation name *

Reid

Please note: We need you to enter the name of the person or organisation who applied for the review, even if you are not the applicant. The applicant's name can usually be found on any letter or other document from the Tribunal. You should enter the applicant's family name unless the application has been made by an organisation.

What is your role in the case? *

Respondent representative

What is your name? *

Irfana Sirguroh

This is the name of the person who is using this service to send us documents. We need the name so that we can contact you if we have any questions about the documents you are sending us.

We will also send a confirmation email to this email address after we have received the documents.

What is your email address? *

irfana.sirguroh@ags.gov.au

Australian mobile number

03 9242 1324

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Have you sent or will you be sending a copy of the document or documents to the other party? *

- (●) Yes
- ( ) No

By selecting 'Yes' to this question, you are taken to have sent a copy of the document(s) to the other party. If you have not already sent the document(s) to the other party, please do not copy the Tribunal when you send the document(s).

Comments (maximum 150 characters)

Are you sending us Section 23 documents (T-documents) on behalf of the agency, organisation or person who made the decision we are reviewing? *

- ○ Yes
- ◉ No

Documents

For each document you want to send us, please select the most appropriate document type from the drop down list.

Use the *Description* field to give us more information about the document or to send us a brief message about the document you are uploading.

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The types of files you can send us are:

- .doc and .docx (Microsoft Word documents),
- .gif, .jpg and .png (GIF, JPEG and PNG image files)
- .pdf (PDF files),
- .rtf (RTF files),
- .xls and .xlsx (Microsoft Excel files).

We do not accept zipped or archive files.

The maximum size for any single file is 15MB. The maximum size for all documents is 100MB.

Document 1

Document type *

Submission

Description (maximum 150 characters)

Respondent's Submissions pursuant to the orders of Deputy President K McMillan KC dated 8 September 2025.

File *

Other attached files: 20250917 Respondents Submissions (Stay).pdf

☐ Add another document

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Our ref. 23004627

29 September 2025

Administrative Review Tribunal - Brisbane Registry
By email only: brisbane.registry@art.gov.au; artsreview@art.gov.au; reviews@art.gov.au

Mrs Vida Reid
By email only: vida_reid@yahoo.com

Mr Simon Reid
By email only: reid.simon4@gmail.com

Dear Registrar

ART Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (NDIS Commission) (ART no. 2023/3361); Simon REID and NDIS Commission (ART no. 2023/3363); Forward Focussed Group Pty Ltd and NDIS Commission (ART no. 2023/4494)

We write further to Vida Reid's submissions in reply dated 23 September 2025.

By way of background, Mrs Reid sought in her original submissions, lodged with the Tribunal on 16 August 2025, to stay her application (and that of Forward Focussed Group [FFG]), seeking a review of the **Commissioner** of the NDIS Quality and Safeguards Commission's decision to affirming the issue of a Banning Order under section 73ZN(2) of the *National Disability Insurance Scheme Act 2013* made on 20 December 2022.

Simon Reid lodged his reply to these submissions on 9 September 2025 and the Respondent on 17 September 2025.

In her reply to these submissions (dated 23 September 2025), Mrs Reid now seeks a stay of the Commissioner's decision to issue a Banning Order made on 20 December 2022 (pages 1 and 17). Prior to these submissions, Mrs Reid's request for a stay has been limited to her ART application and as such, this is a new application for a stay. Accordingly, in the event that it is Mrs Reid's intention to seek a stay of the Commissioner's decision (rather than the ART application as previously submitted), we would be grateful if this could be confirmed as a matter of urgency.

Further, in the event that Mrs Reid confirms that it is her intention to seek a stay of both the ART application and the Commissioner's decision, the Respondent respectfully requests additional directions from the Tribunal as follows:

1. Mr Simon Reid and the Respondent to have an additional period of 14 days to make any further submissions in response to Mrs Reid's reply submissions dated 23 September 2025 to stay the Commissioner's decision dated 21 April 2023 affirming the decision to issue a Banning Order on 20 December 2020.

2. Mrs Reid to have a period of 7 days following receipt of any further submissions as directed by (1) to reply to those submissions.

This correspondence has been copied to both Mrs and Mr Reid.

Yours sincerely



Karlie Dickinson
Senior Lawyer
T 03 9242 1242
Karlie.dickinson@ags.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

22/10/2025 - Correspondence - R f/up

Received Document

Document Category	Administrative
Document Type	Correspondence
Index Description	R f/up
Date Lodged	22/10/2025
S.35 Order for this Document	No
Sender	
Case Party	Yes
Other	No
Case Party	Commissioner of the NDIS Quality and Safeguards Commission
Other	

	Reference
View	3361 Fw_ REID Vida v Commissioner of the ND...pdf

Description / Comments

Dear Registrar

We write further to our letter dated 29 September 2025 and write to enquire whether the Tribunal has had the opportunity to consider our correspondence.

Yours sincerely

Karlie Dickinson

_____
Karlie Dickinson

From:	Sydney Registry
To:	MST.BrisbaneGD
Subject:	Fw: REID, Vida v Commissioner of the NDISQSC (ART No. 2023/3361); REID, Simon v Commissioner of the NDISQSC (ART No. 2023/3363); FFG Pty Ltd v Commissioner of the NDISQSC (ART No. 2023/4494) [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive]
Date:	Friday, 13 February 2026 10:42:39 AM
Attachments:	20262013 Ltr to S Reid re expiry of FFG banning order - 23004627(67988271.1).pdf

Thank you!

Hazel M.
Tribunal Service Officer
Administrative Review Tribunal

From: Land, Craig <Craig.Land@ags.gov.au>
Sent: 13 February 2026 13:07
To: reid.simon4@gmail.com <reid.simon4@gmail.com>
Cc: vida_reid@yahoo.com <vida_reid@yahoo.com>; Sydney Registry <Sydney.Registry@art.gov.au>; artsreview@art.gov.au <artsreview@art.gov.au>; Reviews <reviews@art.gov.au>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: REID, Vida v Commissioner of the NDISQSC (ART No. 2023/3361); REID, Simon v Commissioner of the NDISQSC (ART No. 2023/3363); FFG Pty Ltd v Commissioner of the NDISQSC (ART No. 2023/4494) [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive]

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Dear Mr Reid

Please find **attached** correspondence for your attention in relation to the above matters.

Kind regards

Craig Land
Lawyer
Australian Government Solicitor
T 03 924 21469
craig.land@ags.gov.au

Find out more about AGS at http://www.ags.gov.au

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Our ref. 23001627

13 February 2026

Australian Government Solicitor
Level 5, 4 National Circuit Barton ACT 2600
Locked Bag 35 Kingston ACT 2604
T 02 6253 7000
www.ags.gov.au

Canberra
Sydney
Melbourne
Brisbane
Perth
Adelaide
Hobart
Darwin

Mr Simon Reid - Director, Forward Focused Group Pty Ltd
By email only: *reid.simon4@gmail.com*

Mrs Vida Reid
By email only: *vida_reid@yahoo.com*

Administrative Review Tribunal – Brisbane Registry
By email only: *brisbane.registry@art.gov.au; artsreview@art.gov.au; reviews@art.gov.au*

Dear Mr Reid

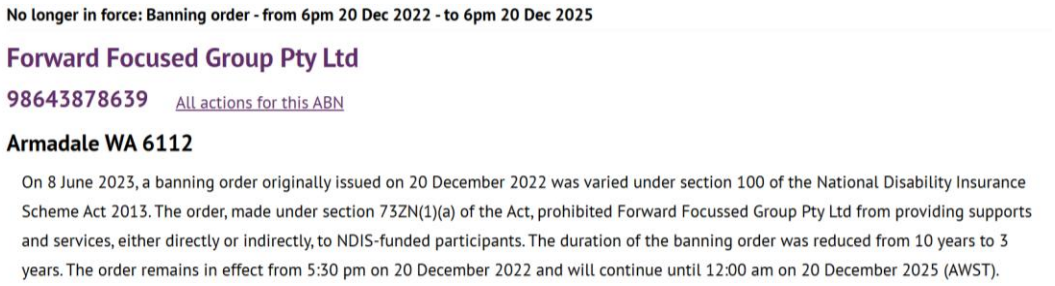
ART Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (ART no. 2023/3361); Simon REID and Commissioner of the NDIS Quality and Safeguards Commission (ART no.2023/3363); Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission (ART no.2023/4494)

We write to you in your capacity as director of Forward Focused Group Pty Ltd (**FFG**) and refer to your email to the Tribunal dated 14 January 2026 in the proceedings referred to above.

As you are aware, the issues raised by your email will be considered by the Tribunal at an interlocutory hearing on 20 March 2026. One of these issues relates to the expiry of the banning order made the Commissioner of the NDIS Quality and Safeguards Commission (**NDIS Commission**) against FFG, which occurred on 20 December 2025. Your email expressed concerns that, as of 14 January 2026, the NDIS Commission's public register of banning orders still listed the order against FFG as active and indicated your view that this "introduces a separate and unrelated administrative error that has become part of FFG's ongoing claim".

Ahead of the hearing on 20 March 2026, we have taken instructions on this point to try and narrow the issues in dispute between the parties.

We are first instructed to draw to your attention that the NDIS Commission's banning order register has been updated since the date of your email. The register now shows that the banning order against FFG expired at 6pm on 20 December 2025 and is no longer in force. Please refer to the below extract taken from the NDIS Commission website on the next page of this letter.



No longer in force: Banning order - from 6pm 20 Dec 2022 - to 6pm 20 Dec 2025

Forward Focused Group Pty Ltd

98643878639 All actions for this ABN

Armadale WA 6112

On 8 June 2023, a banning order originally issued on 20 December 2022 was varied under section 100 of the National Disability Insurance Scheme Act 2013. The order, made under section 73ZN(1)(a) of the Act, prohibited Forward Focussed Group Pty Ltd from providing supports and services, either directly or indirectly, to NDIS-funded participants. The duration of the banning order was reduced from 10 years to 3 years. The order remains in effect from 5:30 pm on 20 December 2022 and will continue until 12:00 am on 20 December 2025 (AWST).

In circumstances where the Commission's register now correctly records the expiry of FFG's banning order, there can be no relevant prejudice or loss which would give rise to a separate or actionable claim by FFG as suggested by your email.

Moving forward, our client's instructions are that it is standard practice for expired banning orders to remain on the NDIS Commission register indefinitely with a status of 'no longer in force'. This is consistent with the goals of the NDIS Commission's Publishing Regulatory Activity policy (**Policy**) to provide greater transparency and visibility over the NDIS Commission's regulatory activities and to influence behaviour and deter future wrongdoing in the NDIS market. You can view a copy of the Policy on the NDIS Commission's website at https://www.ndiscommission.gov.au/about-us/legislation-rules-and-policies/publishing-regulatory-activity-policy.

The Policy provides that in exceptional cases, an individual or provider may submit a written request to the Commission for their name or business name to be removed from the register following the expiry of a banning order. If you would like to make such a request, you may send an email attaching written reasons to internalintegrity@ndiscommission.gov.au.

For the avoidance of doubt, the decision to remove (or not remove) the expired banning order will be made solely by the NDIS Commission. We have no control over the outcome of such an application.

Given the banning order against FFG has expired, we further invite you to consider whether there may be utility in withdrawing FFG's appeal against the NDIS Commission's decision to ban.

We otherwise refer to our existing submissions on the issues raised by your email. Please contact us if you would like to discuss further.

This correspondence has been copied both to Mrs Reid and to the Tribunal.

Yours sincerely

Karlie L Dickinson

Karlie Dickinson
Senior Lawyer
T 03 9242 1244
karlie.dickinson@ags.gov.au

From:	Sydney Registry
To:	MST.BrisbaneGD
Subject:	Fw: REID, Vida v Commissioner of the NDISQSC (ART No. 2023/3361); REID, Simon v Commissioner of the NDISQSC (ART No. 2023/3363); FFG Pty Ltd v Commissioner of the NDISQSC (ART No. 2023/4494) [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]
Date:	Monday, 23 February 2026 2:48:21 PM
Attachments:	REID Vida v Commissioner of the NDISQSC (ART No. 20233361); REID Simon v Commissioner of the NDISQSC (ART No. 20233363); FFG Pty Ltd v Commissioner of the NDISQSC (ART No. 20234494) SECOFFICIALSensitive AGSDMS-DMS.FID4932078.msg

Thank you!

Hazel M.
Tribunal Service Officer
Administrative Review Tribunal

From: Land, Craig <Craig.Land@ags.gov.au>
Sent: 23 February 2026 17:10
To: reid.simon4@gmail.com <reid.simon4@gmail.com>
Cc: vida_reid@yahoo.com <vida_reid@yahoo.com>; Sydney Registry <Sydney.Registry@art.gov.au>; artsreview@art.gov.au <artsreview@art.gov.au>; Reviews <reviews@art.gov.au>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: RE: REID, Vida v Commissioner of the NDISQSC (ART No. 2023/3361); REID, Simon v Commissioner of the NDISQSC (ART No. 2023/3363); FFG Pty Ltd v Commissioner of the NDISQSC (ART No. 2023/4494) [SEC=OFFICIAL:Sensitive] [AGSDMS-DMS.FID4932078]

EXTERNAL EMAIL
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Dear Mr Reid

I refer to our previous correspondence to you dated 13 February 2026 (**attached** again for your reference).

Could you please provide confirmation that this correspondence has been received?

Kind regards

Craig Land
Lawyer
Australian Government Solicitor
T 03 924 21469
craig.land@ags.gov.au

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From: Land, Craig
Sent: 13 February 2026 13:38
To: 'reid.simon4@gmail.com' <reid.simon4@gmail.com>
Cc: 'vida_reid@yahoo.com' <vida_reid@yahoo.com>; 'brisbane.registry@art.gov.au' <brisbane.registry@art.gov.au>; 'artsreview@art.gov.au' <artsreview@art.gov.au>; 'reviews@art.gov.au' <reviews@art.gov.au>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: REID, Vida v Commissioner of the NDISQSC (ART No. 2023/3361); REID, Simon v Commissioner of the NDISQSC (ART No. 2023/3363); FFG Pty Ltd v Commissioner of the NDISQSC (ART No. 2023/4494) [SEC=OFFICIAL:Sensitive] [AGSDMS-DMS.FID4932078]

OFFICIAL: Sensitive

Dear Mr Reid

Please find **attached** correspondence for your attention in relation to the above matters.

Kind regards

Craig Land
Lawyer
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craig.land@ags.gov.au

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From:	Land, Craig
To:	reid.simon4@gmail.com
Cc:	vida_reid@yahoo.com; Sydney Registry; artsreview@art.gov.au; Reviews; Dickinson, Karlie
Subject:	REID, Vida v Commissioner of the NDISQSC (ART No. 2023/3361); REID, Simon v Commissioner of the NDISQSC (ART No. 2023/3363); FFG Pty Ltd v Commissioner of the NDISQSC (ART No. 2023/4494) [SEC=OFFICIAL:Sensitive] [AGSDMS-DMS.FID4932078]
Attachments:	20262013 Ltr to S Reid re expiry of FFG banning order - 23004627(67988271.1).pdf

OFFICIAL: Sensitive

Dear Mr Reid

Please find **attached** correspondence for your attention in relation to the above matters.

Kind regards

Craig Land
Lawyer
Australian Government Solicitor
T 03 924 21469
craig.land@ags.gov.au

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www.ags.gov.au

Canberra
Sydney
Melbourne
Brisbane
Perth
Adelaide
Hobart
Darwin

Our ref. 23001627

13 February 2026

Mr Simon Reid - Director, Forward Focused Group Pty Ltd
By email only: *reid.simon4@gmail.com*

Mrs Vida Reid
By email only: *vida_reid@yahoo.com*

Administrative Review Tribunal – Brisbane Registry
By email only: *brisbane.registry@art.gov.au; artsreview@art.gov.au; reviews@art.gov.au*

Dear Mr Reid

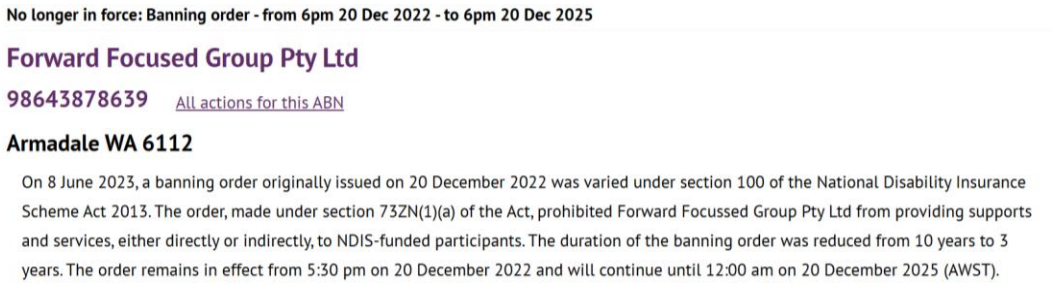
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We are first instructed to draw to your attention that the NDIS Commission's banning order register has been updated since the date of your email. The register now shows that the banning order against FFG expired at 6pm on 20 December 2025 and is no longer in force. Please refer to the below extract taken from the NDIS Commission website on the next page of this letter.



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Forward Focused Group Pty Ltd

98643878639 All actions for this ABN

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The Policy provides that in exceptional cases, an individual or provider may submit a written request to the Commission for their name or business name to be removed from the register following the expiry of a banning order. If you would like to make such a request, you may send an email attaching written reasons to internalintegrity@ndiscommission.gov.au.

For the avoidance of doubt, the decision to remove (or not remove) the expired banning order will be made solely by the NDIS Commission. We have no control over the outcome of such an application.

Given the banning order against FFG has expired, we further invite you to consider whether there may be utility in withdrawing FFG's appeal against the NDIS Commission's decision to ban.

We otherwise refer to our existing submissions on the issues raised by your email. Please contact us if you would like to discuss further.

This correspondence has been copied both to Mrs Reid and to the Tribunal.

Yours sincerely

Karlie L Dickinson

Karlie Dickinson
Senior Lawyer
T 03 9242 1244
karlie.dickinson@ags.gov.au

Outlook

RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

From Land, Craig <Craig.Land@ags.gov.au>
Date Fri 20/3/2026 7:21 AM
To MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>; vida Reid <vida reid@yahoo.com>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; simon reid <reid.simon4@gmail.com>
Cc Hayley B[redacted] <s47E(d) art.gov.au>

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Dear Hayley

Thank you for the information below.

For the avoidance of doubt, we would be grateful if the Tribunal could confirm whether the reference in your email to the respondent's additional submissions dated 8 and 9 March 2026 should instead be a reference to the respondent's submissions dated (a) 17 September 2025, and (b) 19 March 2026.

We otherwise note the receipt of additional submissions from Vida Reid and Simon Reid overnight. We do not object to the Tribunal having regard to these additional submissions as part of its consideration of the severance applications and any timetabling orders.

If we can be of any further assistance to the Tribunal, please let us know.

Yours sincerely

Craig Land
Lawyer
Australian Government Solicitor
T 03 924 21469
craig.land@ags.gov.au

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From: MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>
Sent: 19 March 2026 17:29
To: Land, Craig <Craig.Land@ags.gov.au>; vida Reid <vida_reid@yahoo.com>; Dickinson, Karlie

<Karlie.Dickinson@ags.gov.au>; simon reid <reid.simon4@gmail.com>
Cc: Hayley B[redacted] <s47E(d)[redacted]art.gov.au>
Subject: Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

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Dear Parties,

Thank you for your responses, please be advised that the hearing scheduled for 20 March 2026 is vacated.

The Tribunal acknowledges that Ms Vida Reid has not provided consent to the Tribunal's proposal and as such is granted leave to write to the Tribunal and seek an oral hearing including reasons within **7 days**. If a reply is not received from Ms Reid by **26 March 2026**, the Tribunal will proceed to decide the matters on the papers.

I confirm that I have provided all submissions to Deputy President, including Mr Reid's directions regarding the production orders and programming directions in matter **2023/336,** and the Respondent's additional submissions dated 8 and 9 March 2026. Should there be any issue with these additional submissions, the Tribunal will contact parties.

Should parties have any questions or concerns please feel free to contact me. I appreciate parties' assistance and patience in these proceedings.

Yours sincerely,

Hayley B[redacted]
Member Support Officer - Legal
Administrative Review Tribunal
E s47E(d)[redacted]art.gov.au
P s47E(d)[redacted]
www.art.gov.au

OFFICIAL

From: Land, Craig <Craig.Land@ags.gov.au>
Sent: Thursday, March 19, 2026 4:17 PM
To: Sydney Registry <Sydney.Registry@art.gov.au>
Cc: vida_reid@yahoo.com <vida_reid@yahoo.com>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Hayley B[redacted] <s47E(d)[redacted]art.gov.au>; simon reid <reid.simon4@gmail.com>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

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Dear Hayley

Please accept our apologies for the lateness of this response.

The respondent agrees to the proposal to have the severance applications determined on the papers.

We **attach** short additional submissions for the Tribunal's consideration, solely in response to the additional submissions of the applicants dated 8 and 9 March 2026. These supplement, and should be read alongside, the respondent's previous submissions dated 17 September 2025 on the issue of severance.

If we can be of any further assistance to the Tribunal, please do not hesitate to let us know.

Yours sincerely

Craig Land
Lawyer
Australian Government Solicitor
T 03 924 21469
craig.land@ags.gov.au

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OFFICIAL

From: simon reid <reid.simon4@gmail.com>
Sent: 19 March 2026 14:47
To: Brisbane Registry <brisbane.registry@art.gov.au>
Cc: vida_reid@yahoo.com; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Land, Craig <Craig.Land@ags.gov.au>; s47E(d) art.gov.au
Subject: Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

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Subject: ART Nos. 2023/3363 and 2023/4494 – Response to Tribunal correspondence dated 9 March 2026

Dear Tribunal,

Thank you for your correspondence.

In relation to ART No. 2023/3363, Mr Simon Reid consents to the severance application being determined on the papers. Mr Reid supports severance for the reasons set out in his short directions submissions filed 6 March 2026.

Mr Reid notes that his directions submissions also seek production orders and programming directions in ART No. 2023/3363 which go beyond the severance question. Mr Reid respectfully requests that those matters be addressed at the earliest opportunity, whether at the hearing listed for 20 March 2026 or by separate directions on the papers.

In relation to ART No. 2023/4494, Forward Focused Group Pty Ltd consents to determination on the papers and relies on its position statement already filed. FFG remains on foot but does not seek priority listing ahead of the individual matters.

I note the reference in the Tribunal's correspondence to "20 March 2025" and understand this is intended to refer to 20 March 2026.

Yours sincerely,

Simon Reid

Applicant (ART No. 2023/3363)

Director, Forward Focused Group Pty Ltd (ART No. 2023/4494)

On Tue, 17 Mar 2026 at 10:13 am, Brisbane Registry <brisbane.registry@art.gov.au> wrote:

> Dear Parties,
>
> The Tribunal received correspondence on 9 March 2026 from Ms Vida Reid advising that she is withdrawing the interlocutory application in matter 2023/3361. I further note that correspondence from Mr Simon Reid confirms that the interlocutory application is unrelated to matters 2023/3363 and 2023/4494.
>
> Given the withdrawal, the Tribunal seeks the views of the parties as to whether the hearing on Friday 20 March 2025 to hear the interlocutory application to sever the joint proceedings for matters 2023/3361 and 2023/3363 be heard on the papers.
>
> Pending the disposal of that application, the above matters will be listed for a substantive hearing.
>
> Should parties have any questions or concerns, please contact the Tribunal by way of reply email.
>
> Yours sincerely,
>
> **Hayley B**
> Member Support Officer - Legal
>
> **Administrative Review Tribunal**
>
> T: 1800 228 3 33
> E: brisbane.registry@art.gov.au
>
> www.art.gov.au
>
> Your enquiry is important to us.
> Due to a high volume of enquiries, we are taking longer than usual to reply to emails and requests. We appreciate your patience and understanding as we work to respond as quickly as possible.
> To apply for a review, submit documents, or for more information, visit www.art.gov.au.
> For reviews of NDIS matters lodged after 28 March 2025, documents must be emailed to ARTReviews@art.gov.au.
>
> The Administrative Review Tribunal replaced the Administrative Appeals Tribunal (AAT) and Immigration Assessment Authority (IAA) on 14 October 2024. All reviews not finalised prior to this date have been automatically transferred to the new Tribunal. If you are an applicant or another party to a review, you do not need to do anything. For more information visit www.art.gov.au.

The Tribunal acknowledges the traditional owners and custodians of country throughout Australia and acknowledges their continuing connection to land, waters and community. We pay our respects to the people, the cultures and elders past and present.

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Your enquiry is important to us.
Due to a high volume of enquiries, we are taking longer than usual to reply to emails and requests. We appreciate your patience and understanding as we work to respond as quickly as possible.
To apply for a review, submit documents, or for more information, visit www.art.gov.au.
For reviews of NDIS matters lodged after 28 March 2025, documents must be emailed to ARTReviews@art.gov.au.

The Administrative Review Tribunal replaced the Administrative Appeals Tribunal (AAT) and Immigration Assessment Authority (IAA) on 14 October 2024. All reviews not finalised prior to this date have been automatically transferred to the new Tribunal. If you are an applicant or another party to a review, you do not need to do anything. For more information visit www.art.gov.au.

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Outlook

RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

From Land, Craig <Craig.Land@ags.gov.au>
Date Thu 7/5/2026 9:40 AM
To simon reid <reid.simon4@gmail.com>; MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>; Hayley B[redacted] <s47E(d) art.gov.au>
Cc vida Reid <vida reid@yahoo.com>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Macdonald, Isabelle <Isabelle.Macdonald@ags.gov.au>

3 attachments (589 KB)
20260507 Ltr to S Reid re p(68792525.1).pdf; 20260507 Section 70 applica(68975742.1).pdf; iManage Share - Instructions for external recipients on how to set up a Share account.docx;

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OFFICIAL

Dear Mr Reid

We refer to your email dated 21 April 2026 and to the Tribunal's email dated 22 April 2026 in this matter. This email has been copied to Mrs Reid and to the Tribunal.

Please find **attached:**

a. a letter of today's date for your attention in response to your email dated 21 April 2026; and
b. an application to the Tribunal under section 70(1) of the *Administrative Review Tribunal Act* for non-disclosure orders over two documents which our clients claim are subject to legal professional privilege.

As you will see from our correspondence, our intention remains to provide a revised tribunal bundle in due course once ordered to do so by the Tribunal. However, our client has no objection (subject to the grounds set out in our letter) to providing the relevant documents which were inadvertently omitted from the original tribunal bundle to you immediately as requested.

You should shortly receive a link from AGS' file sharing platform, iManage Share, to copies of the documents referred to in our letter. Please find **attached** instructions for how to access the files – if you have any issues doing this, please let us know as soon as possible.

In relation to the two documents over which our client seeks non-disclosure orders, you may wish to make submissions on this application to the Tribunal by way of return email (copying us). Copies of the two documents in questions have been separately emailed to the Tribunal along with a copy of the application for its consideration.

Kind regards

Craig Land
Lawyer

Australian Government Solicitor
T 03 924 21469
craig.land@ags.gov.au

Find out more about AGS at http://www.ags.gov.au

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OFFICIAL

From: Land, Craig
Sent: 22 April 2026 15:43
To: 'simon reid' <reid.simon4@gmail.com>
Cc: vida Reid <vida_reid@yahoo.com>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL] [AGSDMS-DMS.FID4932078]

Dear Mr Reid

Thank you for your email.

We are in the process of taking instructions on the issues raised by your email and will respond as soon as possible.

Kind regards

Craig Land
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Australian Government Solicitor
T 03 924 21469
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From: simon reid <reid.simon4@gmail.com>
Sent: 21 April 2026 00:55
To: Land, Craig <Craig.Land@ags.gov.au>
Cc: MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>; vida Reid <vida_reid@yahoo.com>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Hayley B[redacted] <s47E(d) art.gov.au>
Subject: Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

OFFICIAL

Dear Mr Land
Simon Reid v Commissioner of the NDIS Quality and Safeguards Commission

ART reference: 2023/3363
(and related proceedings 2023/3361 and 2023/4494)

We write in relation to Mr Reid's addendum reply of 19 March 2026, and the Commission's supplementary submissions of the same date which preceded it.

The Commission's supplementary submissions proposed that an updated tender bundle would be served by 10 April 2026.

Mr Reid's addendum reply sought directions reflecting that date, together with a supplementary disclosure statement and an express statement as to whether any Simon-specific decision brief, executive brief, delegate submission, minute, or equivalent record exists (paragraphs 14(a) to (d)).

The 10 April 2026 date has passed. The updated bundle has not been received. No supplementary disclosure statement has been provided. The question whether a Simon-specific decision brief exists remains unanswered.

Could you please advise whether the non-delivery is the result of an administrative oversight, or whether there is a particular reason for the delay. If the latter, we would be grateful to understand what it is and when service can be expected.

Mr Reid's addendum reply set out why the material is significant.

Much of his case turns on whether the Commission conducted an individualised assessment of his personal suitability to provide supports or services to people with disability, as s 73ZN(2)(a)(iii) of the NDIS Act requires.

It is Mr Reid's hope that, when produced, the documents will contain a comprehensive individualised assessment of his personal suitability, separate and distinct from the assessment of Mrs Vida Reid and of Forward Focused Group Pty Ltd.

To meet the statutory threshold, such an assessment would need to:

1. identify Mr Reid's personal conduct rather than the conduct of related persons or companies attributed to him through key-personnel principles;
2. consider the matters prescribed by the NDIS Rules for the purposes of s 73ZN(2)(a)(iii);
3. engage with the specific time periods during which Mr Reid held directorships of each relevant entity, as established by the ASIC records the Commission itself has tendered;
4. engage substantively with the submissions filed on Mr Reid's behalf by Tom & Co Legal on 30 November 2022;
5. consider the proportionality of the specific period of banning as it applies to Mr Reid individually; and
6. identify the evidentiary basis supporting the s 73ZN(2)(a)(iii) finding of personal unsuitability independently of the prosecution material lodged against Mrs Reid.

Point 6 has particular weight in light of the Commonwealth Director of Public Prosecutions' discontinuance of all four charges against Mrs Reid for no evidence in February 2024.

Mr Reid himself was not charged at any stage. The Statement of Material Facts lodged in support of the charges against Mrs Reid was material the decision-makers expressly relied upon (paragraph 11(f)(v) and paragraph 29(h) of the internal review statement of reasons).

An individualised assessment of the kind described above is the natural place for the Commission to identify how its findings against Mr Reid are sustained independently of that material.

Mr Reid reserves his position on seeking further Tribunal directions in the terms

foreshadowed in his addendum reply, and reserves his right to invite the Tribunal to draw appropriate inferences from the content of the documents when served, including from the continuing absence of any document stating whether a Simon-specific decision brief exists.

A copy of this letter is provided to the Tribunal by reason of its pending consideration of directions on severance and programming.
Yours faithfully

Simon reid

OFFICIAL

On Mon, 6 Apr 2026 at 5:24 pm, simon reid <reid.simon4@gmail.com> wrote:

> Hi all.
>
> Just checking in to see if any decision had been made by the tribunal in regards to this matter?
>
> Regards
> Simon reid.
>
> On Fri, 20 Mar 2026 at 7:21 am, Land, Craig <Craig.Land@ags.gov.au> wrote:
>
> > OFFICIAL
> >
> > Dear Hayley
> >
> > Thank you for the information below.
> >
> > For the avoidance of doubt, we would be grateful if the Tribunal could confirm whether the reference in your email to the respondent's additional submissions dated 8 and 9 March 2026 should instead be a reference to the respondent's submissions dated (a) 17 September 2025, and (b) 19 March 2026.
> >
> > We otherwise note the receipt of additional submissions from Vida Reid and Simon Reid overnight. We do not object to the Tribunal having regard to these additional submissions as part of its consideration of the severance applications and any timetabling orders.
> >
> > If we can be of any further assistance to the Tribunal, please let us know.
> >
> > Yours sincerely
> >
> > _____
> > **Craig Land**
> > Lawyer
> > Australian Government Solicitor
> > **T** 03 924 21469
> > craig.land@ags.gov.au
> >
> > Find out more about AGS at http://www.ags.gov.au
> >
> > **Important:** This message may contain confidential or legally privileged information. If you think it was sent to you by mistake, please delete all copies and advise the sender. For the purposes of the *Spam Act 2003*, this email is authorised by AGS.

From: MST.BrisbaneGD <MST.BrisbaneGD@art.gov.au>
Sent: 19 March 2026 17:29
To: Land, Craig <Craig.Land@ags.gov.au>; vida Reid <vida_reid@yahoo.com>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; simon reid <reid.simon4@gmail.com>
Cc: Hayley B[redacted] <s47E(d) [redacted] art.gov.au>
Subject: Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

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Dear Parties,

Thank you for your responses, please be advised that the hearing scheduled for 20 March 2026 is vacated.

The Tribunal acknowledges that Ms Vida Reid has not provided consent to the Tribunal's proposal and as such is granted leave to write to the Tribunal and seek an oral hearing including reasons within **7 days**. If a reply is not received from Ms Reid by **26 March 2026**, the Tribunal will proceed to decide the matters on the papers.

I confirm that I have provided all submissions to Deputy President, including Mr Reid's directions regarding the production orders and programming directions in matter **2023/336,** and the Respondent's additional submissions dated 8 and 9 March 2026. Should there be any issue with these additional submissions, the Tribunal will contact parties.

Should parties have any questions or concerns please feel free to contact me. I appreciate parties' assistance and patience in these proceedings.

Yours sincerely,

Hayley B[redacted]

Member Support Officer - Legal

Administrative Review Tribunal

E s47E(d) [redacted] art.gov.au

P s47E(d) [redacted]

www.art.gov.au

OFFICIAL

From: Land, Craig <Craig.Land@ags.gov.au>
Sent: Thursday, March 19, 2026 4:17 PM
To: Sydney Registry <Sydney.Registry@art.gov.au>
Cc: vida_reid@yahoo.com <vida_reid@yahoo.com>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Hayley B[redacted] <s47E(d) art.gov.au>; simon reid <reid.simon4@gmail.com>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

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Dear Hayley

Please accept our apologies for the lateness of this response.

The respondent agrees to the proposal to have the severance applications determined on the papers.

We **attach** short additional submissions for the Tribunal's consideration, solely in response to the additional submissions of the applicants dated 8 and 9 March 2026. These supplement, and should be read alongside, the respondent's previous submissions dated 17 September 2025 on the issue of severance.

If we can be of any further assistance to the Tribunal, please do not hesitate to let us know.

Yours sincerely

Craig Land
Lawyer
Australian Government Solicitor
T 03 924 21469
craig.land@ags.gov.au

Find out more about AGS at http://www.ags.gov.au

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OFFICIAL

From: simon reid <reid.simon4@gmail.com>
Sent: 19 March 2026 14:47
To: Brisbane Registry <brisbane.registry@art.gov.au>
Cc: vida_reid@yahoo.com; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Land, Craig <Craig.Land@ags.gov.au>; s47E(d) art.gov.au
Subject: Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

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Subject: ART Nos. 2023/3363 and 2023/4494 – Response to Tribunal correspondence dated 9 March 2026

Dear Tribunal,

Thank you for your correspondence.

In relation to ART No. 2023/3363, Mr Simon Reid consents to the severance application being determined on the papers. Mr Reid supports severance for the reasons set out in his short directions submissions filed 6 March 2026.

Mr Reid notes that his directions submissions also seek production orders and programming directions in ART No. 2023/3363 which go beyond the severance question. Mr Reid respectfully requests that those matters be addressed at the earliest opportunity, whether at the hearing listed for 20 March 2026 or by separate directions on the papers.

In relation to ART No. 2023/4494, Forward Focused Group Pty Ltd consents to determination on the papers and relies on its position statement already filed. FFG remains on foot but does not seek priority listing ahead of the individual matters.

I note the reference in the Tribunal's correspondence to "20 March 2025" and understand this is intended to refer to 20 March 2026.

Yours sincerely,

Simon Reid

Applicant (ART No. 2023/3363)

Director, Forward Focused Group Pty Ltd (ART No. 2023/4494)

On Tue, 17 Mar 2026 at 10:13 am, Brisbane Registry <brisbane.registry@art.gov.au> wrote:

> Dear Parties,
>
> The Tribunal received correspondence on 9 March 2026 from Ms Vida Reid advising that she is withdrawing the interlocutory application in matter 2023/3361. I further note that correspondence from Mr Simon Reid confirms that the interlocutory application is unrelated to matters 2023/3363 and 2023/4494.
>
> Given the withdrawal, the Tribunal seeks the views of the parties as to whether the hearing on Friday 20 March 2025 to hear the interlocutory application to sever the joint proceedings for matters 2023/3361 and 2023/3363 be heard on the papers.
>
> Pending the disposal of that application, the above matters will be listed for a substantive hearing.
>
> Should parties have any questions or concerns, please contact the Tribunal by way of reply email.
>
> Yours sincerely,
>
> **Hayley B**
> Member Support Officer - Legal
>
> **Administrative Review Tribunal**
>
> T: 1800 228 3 33
> E: brisbane.registry@art.gov.au
>
> www.art.gov.au
>
> Your enquiry is important to us.
> Due to a high volume of enquiries, we are taking longer than usual to reply to emails and requests.

We appreciate your patience and understanding as we work to respond as quickly as possible.
To apply for a review, submit documents, or for more information, visit www.art.gov.au.
For reviews of NDIS matters lodged after 28 March 2025, documents must be emailed to ARTReviews@art.gov.au.

The Administrative Review Tribunal replaced the Administrative Appeals Tribunal (AAT) and Immigration Assessment Authority (IAA) on 14 October 2024. All reviews not finalised prior to this date have been automatically transferred to the new Tribunal. If you are an applicant or another party to a review, you do not need to do anything. For more information visit www.art.gov.au.

The Tribunal acknowledges the traditional owners and custodians of country throughout Australia and acknowledges their continuing connection to land, waters and community. We pay our respects to the people, the cultures and elders past and present.

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Your enquiry is important to us.
Due to a high volume of enquiries, we are taking longer than usual to reply to emails and requests.
We appreciate your patience and understanding as we work to respond as quickly as possible.
To apply for a review, submit documents, or for more information, visit www.art.gov.au.
For reviews of NDIS matters lodged after 28 March 2025, documents must be emailed to ARTReviews@art.gov.au.

The Administrative Review Tribunal replaced the Administrative Appeals Tribunal (AAT) and Immigration Assessment Authority (IAA) on 14 October 2024. All reviews not finalised prior to this date have been automatically transferred to the new Tribunal. If you are an applicant or another party to a review, you do not need to do anything. For more information visit www.art.gov.au.

The Tribunal acknowledges the traditional owners and custodians of country throughout Australia and acknowledges their continuing connection to land, waters and community. We pay our respects to the people, the cultures and elders past and present.

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Australian Government Solicitor
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Locked Bag 35 Kingston ACT 2604
T 02 6253 7000
www.ags.gov.au

Canberra
Sydney
Melbourne
Brisbane
Perth
Adelaide
Hobart
Darwin

Our ref. 23001627

7 May 2026

Simon Reid
Director
Forward Focused Group Pty Ltd
96 Amethyst Crescent
Mount Richon WA 6112

By email only: reid.simon4@gmail.com

Dear Mr Reid

ART Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (ART no. 2023/3361); Simon REID and Commissioner of the NDIS Quality and Safeguards Commission (ART no.2023/3363); Forward Focussed Group Pty Ltd (FFG) and Commissioner of the NDIS Quality and Safeguards Commission (ART no.2023/4494)

We refer to:

- your email dated 21 April 2026 in the proceedings referred to above; and
- the Tribunal's correspondence dated 22 April 2026.

As you are aware, we previously filed submissions in this matter on 19 March 2026 in which we foreshadowed the filing of an updated tribunal bundle subject to the Tribunal resolving the severance applications proposed by you, Mrs Reid and FFG. In those submissions, we proposed timetabling orders which would have seen this bundle filed with the Tribunal by no later than 10 April 2026. That proposal was provided on the assumption that the severance applications would be dealt with and that timetabling orders would be made at the case management hearing on 20 March 2026, which did not eventuate.

As confirmed by the Tribunal in its 22 April 2026 email, no decision has yet been made in relation to the severance applications. Our intention is still to provide the Tribunal with a revised tender bundle once ordered to do so by the Tribunal.

In the circumstances, however, we do not object to providing copies to you of the additional documents which were inadvertently omitted from the original tribunal bundle and which we expect to be added to the revised tribunal bundle in due course.

On that basis, we will shortly provide you with copies of the following documents:

1. Notice and Statement of Reasons for the original banning order against Simon Reid;

2. Briefing note EC22-002103 (with attachments numbered 2a to 2zm);
3. Briefing note EC22-002429 (with attachments numbered 3a to 3d);
4. Briefing note EC22-002521 (with attachments numbered 4a to 4j); and
5. Statement of Cassandra Burke dated 16 February 2023 with attachments.

The majority of the attachments to briefing notes EC22-002103, EC22-002429 and EC22-002521 were previously included in the original tender bundle and have been available to you for some time. However, we have reproduced them in this bundle so that you can see exactly which documents were attached to the briefing notes relating to you personally. Attachment N to briefing note EC22-002103, which consists of 33 witness statements (all of which were previously produced in the original tribunal bundle), also forms part of briefing note EC22-002521, but has only been included once to avoid excessive duplication.

For the avoidance of doubt, the letters from Tom & Co to our client dated 22 November 2022, 30 November 2022 and 7 December 2022 (as referred to in our submissions of 19 March 2026) are included as attachments to the briefing notes.

The following documents have not been provided at this time:

1. **Attachments A, B, C, D, E, F, G and Q to EC22-002103** – These documents relate solely to companies which are unrelated to this proceeding and have not been produced on the basis that they have no relevance to the banning order which was issued against you.
2. **Attachment O to EC22-002103 and Attachment G to EC22-002521** – These documents have been produced separately to the Tribunal. Enclosed with this letter is a copy of an application to the Tribunal seeking non-disclosure orders over the documents under section 70(2) of the *Administrative Review Tribunal Act 2024* (Cth) on the basis that the documents are subject to valid claims of legal professional privilege. We invite you to make any submissions to the Tribunal you wish to make on this application by way of return correspondence.
3. **Attachment P to EC22-002103** – This document is an internal email chain between employees of the Commission which we have assessed as not being relevant to the issues in dispute in this matter.
4. **Attachment J to EC22-002103 and Attachment J to EC022-002521** – These are copies of the document “Tactical Intelligence Report – Project Archer” dated 18 August 2022. Our client relies on the non-disclosure and non-publication orders of the Tribunal dated 26 July 2024 in relation to this document.

We otherwise await the Tribunal’s orders in relation to the severance applications, following which we will comply with any timetabling orders which are made to progress this matter.

We will shortly contact you by email in relation to the process for sharing these

documents with you.

This letter has been copied to Mrs Reid and to the Tribunal.

Yours sincerely



Karlie Dickinson
Senior Executive Lawyer
T 03 9242 1244
karlie.dickinson@ags.gov.au

ADMINISTRATIVE REVIEW TRIBUNAL
BRISBANE REGISTRY

2023/3361
2023/3363
2023/4494

VIDA REID
Applicant

SIMON REID
Applicant

FORWARD FOCUSED GROUP PTY LTD
Applicant

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

REQUEST FOR NON-DISCLOSURE ORDERS UNDER SECTION 70 OF THE *ADMINISTRATIVE REVIEW TRIBUNAL ACT 2024*

Orders sought:

Under s 70(2) of the *Administrative Review Tribunal Act 2024* (Cth) (**ART Act**), the Administrative Review Tribunal directs in the above proceedings:

1. that the following documents not be subject to disclosure requirements under s 27 or any other section of the ART Act, and that the disclosure of these documents to the applicants or the public at large is prohibited, on the basis that the documents were created for the dominant purpose of providing legal advice to the Respondent on the matters in dispute and are therefore subject to claims of legal professional privilege:

    a Attachment O to Briefing Note EC22-022103 in relation to a notice of intention to issue a banning order against Simon Reid, being a copy of legal advice provided to the Respondent about that briefing note; and

    b Attachment G to Briefing Note EC22-002521 in relation to the issuing of a banning order against Simon Reid, being a copy of legal advice provided to the Respondent about that briefing note.

Lodged on behalf of the Respondent
The Australian Government Solicitor
4 National Circuit Barton ACT 2600
DX 5678 Canberra

Contact: Craig Land
File ref: 23004627
Telephone: 03 924 21469
E-mail: craig.land@ags.gov.au

Date: 7 May 2026



Karlie Dickinson
A/g Senior Executive Lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent

Lodged on behalf of the Respondent
The Australian Government Solicitor
4 National Circuit Barton ACT 2600
DX 5678 Canberra

Contact: Craig Land
File ref: 23004627
Telephone: 03 924 21469
E-mail: craig.land@ags.gov.au

INSTRUCTIONS FOR EXTERNAL RECIPIENTS ON HOW TO SET UP AN IMANAGE SHARE ACCOUNT

Background

When AGS shares folders or documents with external recipients via iManage Share, the recipient is required to set up an iManage Share account and multi-factor authentication (2FA) to access the shared documents.

This guide outlines the steps required for an external recipient to set up an iManage Share account.

Note:
If the external recipient already uses iManage Share, then 'AGS' will show up as a tab in their iManage Share portal, from which they can access AGS shared items.

Permissions

1. AGS select the appropriate permission level the recipient is to be granted.

   Guest: can download files.

   Note:
   Guests can upload files if they receive an Upload Request from AGS.

   Collaborator: can download files, upload files, create subfolders, view document history.

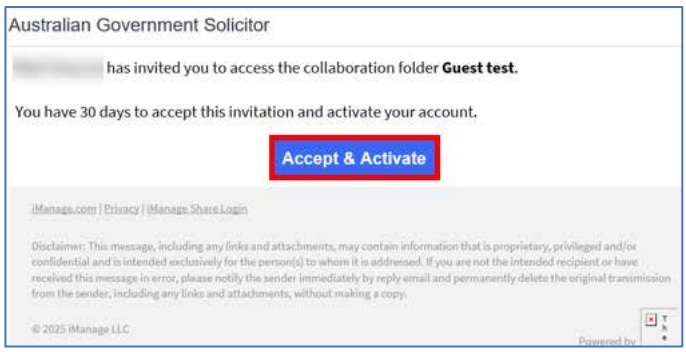
   Note:
   Collaborator is the preferred maximum access to grant an external recipient.

   Co-owner (same as Owner): can download files, upload files, create subfolder, delete files/folders, view document history.

	Download files	Upload files	Create subfolder	Delete files/folders	View document history
Guest	Y	N	N	N	N
Collaborator	Y	Y	Y	N	Y
Co-Owner (same as Owner)	Y	Y	Y	Y	Y

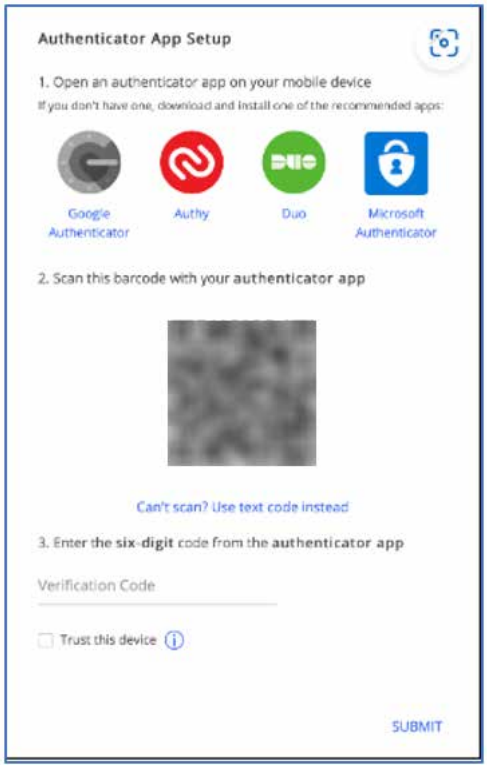
INSTRUCTIONS FOR EXTERNAL RECIPIENTS ON HOW TO SET UP AN IMANAGE SHARE ACCOUNT

Steps and authentication process the external recipient needs to action

1. External user will receive an email with the Subject: **Folder Share Notification from Australian Government Solicitor**	
2. The email will detail that the external user has been invited to access folders or documents. Within the email are the following instructions: **You have 30 days to accept this invitation and activate your account** External user selects **Accept and Activate**	
3. The YouTube video will guide you through logging in and setting up multi-factor authentication (2FA).	

INSTRUCTIONS FOR EXTERNAL RECIPIENTS ON HOW TO SET UP AN IMANAGE SHARE ACCOUNT

Steps explained in the YouTube video:

1. Multi-factor authentication (2FA) is required for external users. **For security reasons the preferred method of 2FA is via an Authenticator App** Select Use Authenticator App and select **Set Up** **Note:** A confirmation email will be sent following successful authentication.	
2. You can choose one of the following options to configure 2FA: · **Use Authenticator App**: iManage Share supports common TOTP (Time-based One-Time Password) Authenticator applications including, but not limited to: - Google Authenticator - Authy - Duo - Microsoft Authenticator Scan the barcode shown in the **Authenticator App Set up** from your authenticator application. If you are unable to scan the barcode, select: Can't scan? Use text code instead A 32-digit unique code is generated. Enter this code manually into the authenticator app on your phone, the app then generates a six-digit code. Enter the six-digit code generated in authenticator app in the Verification Code field and select **Submit** to complete the 2FA set up.	

ADMINISTRATIVE REVIEW TRIBUNAL
BRISBANE REGISTRY

2023/3361
2023/3363
2023/4494

VIDA REID
Applicant

SIMON REID
Applicant

FORWARD FOCUSED GROUP PTY LTD
Applicant

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

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Orders sought:

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1. that the following documents not be subject to disclosure requirements under s 27 or any other section of the ART Act, and that the disclosure of these documents to the applicants or the public at large is prohibited, on the basis that the documents were created for the dominant purpose of providing legal advice to the Respondent on the matters in dispute and are therefore subject to claims of legal professional privilege:

    a Attachment O to Briefing Note EC22-022103 in relation to a notice of intention to issue a banning order against Simon Reid, being a copy of legal advice provided to the Respondent about that briefing note; and

    b Attachment G to Briefing Note EC22-002521 in relation to the issuing of a banning order against Simon Reid, being a copy of legal advice provided to the Respondent about that briefing note.

Lodged on behalf of the Respondent
The Australian Government Solicitor
4 National Circuit Barton ACT 2600
DX 5678 Canberra

Contact: Craig Land
File ref: 23004627
Telephone: 03 924 21469
E-mail: craig.land@ags.gov.au

Date: 7 May 2026



Karlie Dickinson
A/g Senior Executive Lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent

Lodged on behalf of the Respondent
The Australian Government Solicitor
4 National Circuit Barton ACT 2600
DX 5678 Canberra

Contact: Craig Land
File ref: 23004627
Telephone: 03 924 21469
E-mail: craig.land@ags.gov.au

From:	Brisbane Registry (GD)
To:	MST.BrisbaneGD
Subject:	FW: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]
Date:	Wednesday, 22 January 2025 2:19:34 PM

From: Brisbane Registry <Brisbane.Registry@art.gov.au>
Sent: Wednesday, 22 January 2025 16:19:29 (UTC+10:00) Brisbane
To: Brisbane Registry (GD) <Brisbane.GD@art.gov.au>
Subject: FW: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

File No: 2023/3361
Case Name: RE Reid and Commissioner of the NDIS Quality and Safeguards Commission
File Loc: Brisbane, MST TL
Case Officer: C[redacted], Angelique
Next Listing:
List Date:
Local Receive Time: Wednesday, January 22, 2025 4:18 PM

From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Sent: Wednesday, January 22, 2025 6:18:08 AM
To: Brisbane Registry <Brisbane.Registry@art.gov.au>
Subject: Automatic reply: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

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Thank you for your email. I am on leave, returning Tuesday 28 January 2025.

I am on leave, returning Tuesday, 28 January 2025. If your matter is urgent, please contact Irfana Sirguroh on 03 9242 1324 or email Irfana.sirguroh@ags.gov.au.

With best wishes

Karlie

If you have received this transmission in error please notify us immediately by return e-mail and delete all copies. If this e-mail or any attachments have been sent to you in error, that error does not constitute waiver of any confidentiality, privilege or copyright in respect of information in the e-mail or attachments.

From:	Sydney Registry
To:	MST.BrisbaneGD
Subject:	Fw: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Personal-Privacy]
Date:	Wednesday, 11 June 2025 2:23:49 PM
Attachments:	20250606 Draft Tribunal Orders(55064019.1).docx

From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Sent: 06 June 2025 16:23
To: Sydney Registry <Sydney.Registry@art.gov.au>; vida_reid@yahoo.com <vida_reid@yahoo.com>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive, ACCESS=Personal-Privacy]

EXTERNAL EMAIL
"Do not click any links or open any attachments unless you trust the sender, are expecting this email and know the content is safe."

OFFICIAL
Personal Privacy

Dear Registry and Mrs Reid

Thank you for your message. We have attached the proposed orders as discussed today during the directions hearing.

Mrs Reid – you will notice that we have included that the hearing be held by Microsoft teams however if you do not agree to this, please let us know as soon as possible and we will amend this order. The Commission is content for the hearing to proceed in this way.

Yours sincerely

Karlie Dickinson

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **M** 0497 538 784
karlie.dickinson@ags.gov.au

My working days are: Monday, Tuesday and Wednesday

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OFFICIAL

Personal Privacy

From: Brisbane Registry <brisbane.registry@art.gov.au>
Sent: Friday, 6 June 2025 4:06 PM
To: vida_reid@yahoo.com; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

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Dear Parties,

Following the conclusion of the Telephone Directions Hearing, the Tribunal seeks to enquire the parties preference of the modality of the hearing. If both parties are content with Microsoft Teams, could the Respondent please include this in the directions sought to be made.

Yours sincerely

Kathy L
Tribunal Services Officer

Administrative Review Tribunal
GD Registry
T: 1800 228 333
E: brisbane.registry@art.gov.au

www.art.gov.au

The Administrative Review Tribunal replaced the Administrative Appeals Tribunal (AAT) and Immigration Assessment Authority (IAA) on 14 October 2024. All reviews not finalised prior to this date have been automatically transferred to the new Tribunal. If you are an applicant or another party to a review, you do not need to do anything. For more information visit www.art.gov.au.

The Tribunal acknowledges the traditional owners and custodians of country throughout Australia and acknowledges their continuing connection to land, waters and community. We pay our respects to the people, the cultures and elders past and present.

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From:	Sydney Registry
To:	MST.BrisbaneGD
Subject:	Fw: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL:Sensitive, ACCESS=Personal-Privacy]
Date:	Wednesday, 6 August 2025 8:00:43 AM

Tahlie C

From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Sent: 06 August 2025 09:00
To: vida Reid <vida_reid@yahoo.com>; Sydney Registry <Sydney.Registry@art.gov.au>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL:Sensitive, ACCESS=Personal-Privacy]

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Dear Mrs Reid

We write in relation to your application before the Tribunal and to enquire as to whether or not you are intending to lodge any submissions following the discussion during the directions hearing on 6 June 2025. We would be grateful if you would please provide an update.

Yours sincerely

Karlie Dickinson

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **M** 0497 538 784
karlie.dickinson@ags.gov.au

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From: vida Reid <vida_reid@yahoo.com>
Sent: Saturday, 14 June 2025 7:36 PM
To: Registry Brisbane <brisbane.registry@art.gov.au>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL, ACCESS=Personal-Privacy] [AGSDMS-

DMS.FID4932078]

To the Deputy President and Members of the Tribunal,
Administrative Review Tribunal (ART)

Re: Request for Cultural Mourning Period

Dear Deputy President and Tribunal Members,

I write to you with a heavy heart amidst an unspeakable personal tragedy. I have just been informed that several members of my extended family in Iran are missing, and some have now been confirmed dead, following unprovoked and devastating bombings by Israel on Iranian soil at night while children were sleeping.

The grief I am experiencing is profound and overwhelming. As someone with deep cultural and familial ties to Iran, I am observing this period of loss in accordance with our custom of a **forty-five (45) day mourning period**, which is a deeply ingrained practice of reflection, grieving, and spiritual healing in our culture.

Given the emotional and psychological toll of this situation, I am simply not in the frame of mind or heart to prepare or lodge any further legal submissions at this time. I therefore respectfully request that the Tribunal grant me a 45-day extension on any filing or procedural deadlines currently set in this matter, so that I may honour this period of mourning with dignity.

This request is made not out of delay but out of necessity and human decency, as I try to cope with the enormity of what has occurred. I trust the Tribunal will understand and respond with compassion in accordance with its obligations to act with fairness and flexibility.

I would be grateful if confirmation of this request could be provided in writing. I look forward to your response.

Thank you for your understanding during this immensely difficult time.

Yours faithfully,
Vida Reid
Sent from my iPhone

> On 18 May 2025, at 6:38 pm, vida Reid <vida_reid@yahoo.com> wrote:
>
> Dear Tribunal Officer,
> Thank you for your correspondence regarding the proposed Telephone Directions Hearing.
> I confirm that I am available on **6 June 2025 at 1:00PM (AEST)** for the listed hearing or any time that day is fine as well.
> As previously stated in multiple emails and also confirmed during the

Teams video hearing (which was later vacated), I am **self-represented**.

Kind regards,
Vida Reid

On Friday 16 May 2025 at 11:09:28 am AWST, Dickinson, Karlie <karlie.dickinson@ags.gov.au> wrote:

OFFICIAL
Personal Privacy

Dear Registry

Thank you for your email on Wednesday 14 May 2025.

The Respondent is content with the approach outlined in your email and is available to appear on 6 June 2025 at 1pm (AEST) or later that same day.

Yours sincerely

Karlie Dickinson

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **M** 0497 538 784
karlie.dickinson@ags.gov.au

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From: Brisbane Registry <brisbane.registry@art.gov.au>
Sent: Wednesday, 14 May 2025 3:30 PM
To: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; vida_reid@yahoo.com
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

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Dear Parties,

The Tribunal wishes to list this matter for a Telephone Directions Hearing to progress the matter. It should be noted that this will only be listed with the Applicant and Respondent.

The Telephone Directions Hearing will address the issues of the privacy breach, Directions to the listing of the application for a stay and Mrs Reid's application to be heard separately.

The Tribunal intends to correspond with Mr Reid and the Company, as there have been certain issues that have arisen which Ms Reid seeks to ventilate and the nature of this, indicates that such matters be dealt with in their absence. Could both Mrs Reid and the Respondent indicate their views as to this course and the availability of the parties on the below dates:
- 30 May 2025
- 1:00PM (AEST) 6 June 2025 or later
- 10 June
- 11 June

Additionally, the Respondent notes that Mrs Reid is no longer represented. Mrs Reid, could you please confirm this so fut ure correspondence can be directed to you.

Yours sincerely

Kathy L
Tribunal Services Officer

Administrative Review Tribunal
GD Registry
T: 1800 228 333
E: brisbane.registry@art.gov.au

www.art.gov.au

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From: Pathway Support
To: MST.BrisbaneGD
Subject: Fw: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]
Date: Tuesday, 12 May 2026 2:50:09 PM

From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Sent: Tuesday, 12 May 2026 16:47
To: Pathway Support <PathwaySupport@art.gov.au>; vida_reid@yahoo.com <vida_reid@yahoo.com>; Land, Craig <Craig.Land@ags.gov.au>; reid.simon4@gmail.com <reid.simon4@gmail.com>
Cc: Hayley B[redacted] <s47E(d)[redacted]art.gov.au>
Subject: RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

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Dear Ms B[redacted]

With apologies for the delay in responding, we confirm that the Respondent's submissions are as listed below (dated 17 September 2025 and 19 March 2026).

Yours sincerely

Karlie Dickinson

Karlie Dickinson
A/g Senior Executive Lawyer
Australian Government Solicitor
T 03 9242 1244 **M** 0497 538 784
karlie.dickinson@ags.gov.au
(Work Days: Monday, Tuesday, Thursday AM and Friday)

OFFICIAL

From: Brisbane Registry <brisbane.registry@art.gov.au>
Sent: Tuesday, 12 May 2026 4:22 PM
To: vida_reid@yahoo.com; Land, Craig <Craig.Land@ags.gov.au>; reid.simon4@gmail.com
Cc: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; s47E(d)[redacted]art.gov.au
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

- General Correspondence [SEC=OFFICIAL]

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Dear parties,

I refer to the correspondence that was sent to parties on 22 April 2026 seeking confirmation on the submissions filed in relation to the severence application.

The Tribunal acknowledges that there have been several submissions made in relation to this application and for the avoidance of doubt seeks parties to confirm that the following submissions have been filed.
- Vida Reid Short Direction Submission dated 8 March 2026
- Vida Reid Reply dated 19 March 2026
- Simon Reid Short Directions Submission dated 6 March 2026
- Simon Reid Reply Dated 19 MArch 2026
- Respondent Submission to Stay dated 17 September 2025
- Respondent Supplementary Submission dated 19 March 2026

I confirm that the above submissions are in support of Ms Vida Reid's Application to Sever filed 16 August 2025.

I would be grateful if parties could provide confirmation by COB on 13 May 2026.

Yours sincerely,

Hayley B
Member Support Officer - Legal

Administrative Review Tribunal

T: 1800 228 333
E: brisbane.registry@art.gov.au

www.art.gov.au

Your enquiry is important to us.
Due to a high volume of enquiries, we are taking longer than usual to reply to emails and requests. We appreciate your patience and understanding as we work to respond as quickly as possible.
To apply for a review, submit documents, or for more information, visit www.art.gov.au.
For reviews of NDIS matters lodged after 28 March 2025, documents must be emailed to ARTReviews@art.gov.au.

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From:	Sydney Registry
To:	MST.BrisbaneGD
Subject:	Fw: REID, Vida v Commissioner of the NDISQSC (ART No. 2023/3361); REID, Simon v Commissioner of the NDISQSC (ART No. 2023/3363); FFG Pty Ltd v Commissioner of the NDISQSC (ART No. 2023/4494) [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive]
Date:	Tuesday, 30 September 2025 7:49:17 AM
Attachments:	20250929 Letter to ART and Mrs Reid in relation to stay application 23004627.pdf

Jessica H
Tribunal Services Officer
Administrative Review Tribunal

www.art.gov.au

From: Sirguroh, Irfana <Irfana.Sirguroh@ags.gov.au>
Sent: 29 September 2025 16:35
To: Sydney Registry <Sydney.Registry@art.gov.au>; artsreview@art.gov.au <artsreview@art.gov.au>; Reviews <reviews@art.gov.au>; vida_reid@yahoo.com <vida_reid@yahoo.com>; reid.simon4@gmail.com <reid.simon4@gmail.com>
Cc: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: REID, Vida v Commissioner of the NDISQSC (ART No. 2023/3361); REID, Simon v Commissioner of the NDISQSC (ART No. 2023/3363); FFG Pty Ltd v Commissioner of the NDISQSC (ART No. 2023/4494) [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL:Sensitive]

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Dear Registrar

Please find **attached** correspondence regarding the above matters.

Kind regards

Irfana Sirguroh
Legal Assistant
Australian Government Solicitor
T 03 9242 1324
irfana.sirguroh@ags.gov.au

Find out more about AGS at http://www.ags.gov.au

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From:	Sydney Registry
To:	MST.BrisbaneGD
Subject:	Fw: Vida Reid – (AAT Matter No. 2023/3361) Formal Application for Stay of proceedings and severance – Lodged in accordance with the Tribunal's direction of 6th July 2025 [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]
Date:	Tuesday, 26 August 2025 8:38:15 AM

Jessica H
Tribunal Services Officer
Administrative Review Tribunal

www.art.gov.au

From: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Sent: 26 August 2025 10:36
To: vida Reid <vida_reid@yahoo.com>; Sydney Registry <Sydney.Registry@art.gov.au>; Simon Reid <reid.simon4@gmail.com>; info@ffg.net.au <info@ffg.net.au>
Cc: ben.comerford@ndiscommission.gov.au <ben.comerford@ndiscommission.gov.au>
Subject: RE: Vida Reid – (AAT Matter No. 2023/3361) Formal Application for Stay of proceedings and severance – Lodged in accordance with the Tribunal's direction of 6th July 2025 [AGSDMS-DMS.FID4932078] [SEC=OFFICIAL]

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Dear Registry

We write further to the provision of Mrs Vida Reid's submissions and the Tribunal's original directions as discussed at the directions hearing on 6 June 2025, which were as follows:

Applicant (Mrs Reid) to file her submissions on 27 June 2025
Mr Simon Reid to file any submissions on 18 July 2025
Commissioner to file any submissions on 1 August 2025.

In light of the fact that Mrs Reid has provided her submissions on 16 August, we would suggest that it would be appropriate and keeping in line with the Tribunal's directions, to invite Mr Simon Reid to lodge any submissions on or before 8 September and for the Commissioner to lodge any submissions on or before 22 September.

Yours sincerely

Karlie Dickinson

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **M** 0497 538 784
karlie.dickinson@ags.gov.au

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From: vida Reid <vida_reid@yahoo.com>
Sent: Saturday, 16 August 2025 5:13 AM
To: Brisbane Registry <brisbane.registry@art.gov.au>; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; Simon Reid <reid.simon4@gmail.com>; info@ffg.net.au
Subject: Vida Reid – (AAT Matter No. 2023/3361) Formal Application for Stay of proceedings and severance – Lodged in accordance with the Tribunal's direction of 6th July 2025

Dear Parties,
Please find attached my Defence Submission, served pursuant to the direction issued by Deputy President McMillan KC in the matter of **Reid v NDIS Commission – Case No. 2023/3361**

This service is made *solely in compliance with the Tribunal's enforced direction,* and should not be interpreted as voluntary disclosure, informed consent, or abandonment of my right to pursue complaints or review of this process, including via the Commonwealth Ombudsman, the Privacy Commissioner, or superior courts including the high court of Australia.

Kind Regards,
Vida

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